सत्यमेव जयते

ANNUAL REPORT

2024-25

CORPORATE GOVERNANCE

MINISTRY OF CORPORATE AFFAIRS
GOVERNMENT OF INDIA

ANNUAL REPORT

2024-25

सत्यमेव जयते

Government of India

Ministry of Corporate Affairs

CONTENTS

CHAPTER **PAGE NO.**

CHAPTER-I
Overview 1-3

CHAPTER-II
Organisational Structure and Functions 4-16

CHAPTER-III
The Companies Act, 2013/1956 and its Administration 17-28

CHAPTER-IV
The Limited Liability Partnership (LLP) Act, 2008 29-30

CHAPTER-V
The Competition Act, 2002 and Related Activities 31-36

CHAPTER-VI
The Insolvency and Bankruptcy Code, 2016 37-41

CHAPTER-VII
Towards Interactive and Responsive Administration 42-64

CHAPTER-VIII
Professional Institutes under the aegis of the Ministry of Corporate Affairs 65-71

CHAPTER-IX
The Prime Minister's Internship Scheme 72-73

ANNEXURE (I to XIII) i-xxvi

IMPORTANT ABBREVIATIONS

Sl. No.	Term	Full Form
1	AI/ML	Artificial Intelligence and Machine Learning
2	BLRC	Bankruptcy Law Reforms Committee
3	CA	Companies Act
4	CAA	Companies Amendment Act
5	CBIRC	Cross Border Insolvency Rules/Regulations Committee (CBIRC)
6	CCI	Competition Commission of India
7	CDM	Corporate Data Management
8	CEIB	Central Economic Intelligence Bureau
9	CG	Central Government
10	CIN	Corporate Identification Number
11	CIRP	Corporate Insolvency Resolution Process
12	CLC	Company Law Committee
13	C-PACE	Centre for Processing Accelerated Corporate Exit
14	CPC	Central Processing Centre
15	CPGRAMS	Centralized Public Grievance Redress and Monitoring System
16	CPIO	Central Public Information Officer
17	CPSE	Central Public Sector Enterprises
18	CRC	Central Registration Centre
19	CSC	Central Scrutiny Centre
20	CSR	Corporate Social Responsibility
21	DGCoA	Director General of Corporate Affairs
22	DIN	Director Identification Number
23	DSC	Digital Signature Certificate
24	EoDB	Ease of Doing Business
25	ESG	Environmental, Social and Governance
26	FICCI	Federation of Indian Chambers of Commerce and Industry
27	FiLLiP	Form for Incorporation of Limited Liability Partnership
28	FIU	Financial Intelligence Unit
29	FOIR	Forum of Indian Regulators
30	FRQR	Financial Reporting Quality Review
31	FSDC	Financial Stability and Development Council
32	IAIR	International Association of Insolvency Regulators
33	IAPs	Investor Awareness Programme

Sl. No.	Term	Full Form
34	IBBI	Insolvency and Bankruptcy Board of India
35	IBC	Insolvency and Bankruptcy Code, 2016
36	ICAI	Institute of Chartered Accountants of India
37	ICoAI	Institute of Cost Accountants of India
38	ICLS	Indian Corporate Law Service
39	ICLSA	Indian Corporate Law Service Academy
40	ICSI	Institute of Company Secretaries of India
41	IEPFA	Investor Education and Protection Fund Authority
42	IFIAR	International Forum of Independent Audit Regulators
43	IFRS	International Financial Reporting Standards
44	IGMC	Investor Grievance Management Cell
45	IICA	Indian Institute of Corporate Affairs
46	ILC	Insolvency Law Committee
47	IP	Insolvency Professional
48	IPA	Insolvency Professional Agency
49	IPE	Insolvency Professional Entity
50	IRDAI	Insurance Regulatory and Development Authority of India
51	IWWG	Inspection Workshop Working Group
52	LLP	Limited Liability Partnership
53	MCA	Ministry of Corporate Affairs
54	MoU	Memorandum of Understanding
55	MRA	Mutual Recognition Agreement
56	NCLT	National Company Law Tribunal
57	NCLAT	National Company Law Appellate Tribunal
58	NeGP	National e-Governance Plan
59	NFCG	National Foundation for Corporate Governance
60	NFRA	National Financial Reporting Authority
61	NGRBC	National Guidelines for Responsible Business Conduct
62	OLs	Official Liquidators
63	OPC	One Person Company
64	PAN	Permanent Account Number
65	PIEs	Public Interest Entities
66	PI	Professional Institutes

Sl. No.	Term	Full Form
67	RBI	Reserve Bank of India
68	RD	Regional Director
69	RoC	Registrar of Companies
70	RTI	Right to Information
71	RV	Registered Valuer
72	RVO	Registered Valuer Organisation
73	SEBI	Security and Exchange Board of India
74	SFIO	Serious Fraud Investigation Office
75	SPICe	Simplified Proforma for Incorporating Company Electronically
76	STP	Straight Through Process
77	TAN	Tax Deduction and Collection Account Number
78	UNCITRAL	United Nations Commission on International Trade Law
79	UNDP	United Nations Development Programme

CHAPTER-I
OVERVIEW

1.1.1 The mandate of the Ministry of Corporate Affairs (MCA), inter-alia, includes the administration of a wide range of statutes for the regulation of the corporate sector, as given below:

i. The Companies Act, 2013/ The Companies Act, 1956.

ii. The Limited Liability Partnership Act, 2008.

iii. The Competition Act, 2002.

iv. The Insolvency and Bankruptcy Code, 2016.

v. The Chartered Accountants Act, 1949.

vi. The Cost and Works Accountant Act, 1959.

vii. The Company Secretaries Act, 1980.

viii. The Societies Registration Act, 1860 and Indian Partnership Act, 1932 (in centrally administered areas).

ix. The Companies (Donations to National Funds) Act, 1951.

Functions

1.1.2 The main responsibilities of the Ministry are as follows:

i. Administration of the provisions of the Companies Act, 2013, and also pending/ ongoing cases as regards the Companies Act, 1956.

ii. Formulation of Rules and Regulations under various statutes administered by the Ministry.

iii. Convergence of Indian Accounting Standards with International Financial Reporting Standards (IFRS).

iv. Implementation of Competition Act through the Competition Commission of India (CCI).

v. Implementation of IBC, 2016.

vi. Implementation of e-Governance in MCA.

vii. Building systems for early detection of irregularities in corporate functioning.

viii. Conducting Investor Education and Awareness Programmes.

ix. Investigation of serious frauds through the Serious Fraud Investigation Office (SFIO).

x. Management of the cadre of the Indian Corporate Law Service (ICLS).

xi. Administration of The Chartered Accountants Act, 1949, The Cost and Works Accountant Act, 1959 , The Company Secretaries Act, 1980 for proper and orderly growth of the professions concerned.

xii. Collecting financial and corporate data from all registered companies with the MCA electronically through the MCA21 system.

Important Policy Developments under the Companies Act 2013

1.2.1 Amendment has been made in the Companies (Appointment & Qualification of Directors) Rules, 2014 on July 16, 2024 (effective from August 1, 2024) to address the suggestions of stakeholders for allowing additional opportunities to update their personal mobile number/ email address in the KYC database.

1.2.2 The Companies (Adjudication of Penalties) Rules, 2014 have been amended on August 5, 2024 (effective from September 16, 2024) pursuant to which it has been provided that the adjudication proceedings under section 454 of the Companies Act, 2013 by the Adjudicating Officers and Regional Directors shall take place in electronic mode only through the e-adjudication platform developed by the Ministry for this purpose. This would enable adjudication of such proceedings in a faster and user-friendly manner.

1.2.3 An Amendment has been made in rule 25A of the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 on September 9, 2024. (effective from September 17, 2024. Pursuant to this amendment, merger of a holding company incorporated abroad with its wholly owned subsidiary incorporated in India would require approval of Central Government (delegated to Regional Directors). Prior to this amendment, such mergers required approval of the NCLT. This amendment would enable NCLT to concentrate on other areas and also speed up the process.

1.2.4 The Companies (Prospectus and Allotment of Securities) Rules, 2014, have been amended on 20.09.2024. Through this amendment extended period has been allowed to the Producer Companies to comply with Rule 9B of such Rules which relates to mandatory dematerialization of securities by non-small private companies.

1.2.5 The Companies (Adjudication of Penalties) Rules, 2014 have been amended on 09.10.2024 to provide that those proceedings continuing before the Adjudicating Officers and Regional Directors before such commencement i.e. 16.09.2024 shall continue as per provision of the rules existing prior to such commencement.

Company Law Committee, 2022

1.3.1 In line with Government's objective of promoting Ease of Living in the country by providing Ease of Doing Business to law abiding corporates, by fostering corporate compliance for stakeholders and also by addressing emerging issues having impact on the working of corporates in the country, the Company Law Committee was constituted in 2019 for examining and making recommendations to the Government on various provisions and issues pertaining to implementation of the CA-13 and the Limited Liability Partnership Act, 2008 (LLP Act, 2008). The Committee is chaired by Secretary, Ministry of Corporate Affairs and comprises of representatives from Industry Bodies, Professional Institutes, Accounting and Legal Experts.

1.3.2 The CLC submitted its latest Report (2022) to the Government on March 21, 2022 containing various recommendations for amendments in CA-13 and LLP Act, 2008. The report was placed on the website of the Ministry for public comments. Further, necessary actions are being taken on the comments received from all concerned stakeholders and the public.

Provisions under the Companies Act, 2013 for the benefit of persons with disabilities

1.4.1 Schedule VII read with Section 135 of CA-13 specifically allows companies to include in their CSR policies, activities for promotion of education, vocational skills among differently abled, and training to promote paralympic sports.

CHAPTER-II

ORGANISATIONAL STRUCTURE AND FUNCTIONS

Administrative Structure

2.1.1 The Ministry has a three-tier organisational structure with the headquarters at New Delhi; seven offices of Regional Directors (RDs) at Ahmedabad, Chennai, Hyderabad, Kolkata, Mumbai, New Delhi, and Guwahati; twenty-five Registrars of Companies (RoCs), twenty-three Official Liquidators (OLs) out of which nine are RoC-cum-OLs in States and Union Territories. A brief description of the above offices/establishments is given in the following paragraphs.

Headquarters

2.2.1 As on 30.11.2024 the administrative structure at the headquarters consisted of the Secretary, one Additional Secretary, one Additional Secretary and Financial Adviser, one Senior Economic Adviser, one Director General of Corporate Affairs (DGCoA), three Joint Secretaries, one Cost Adviser, one Deputy Director General, and other officials having expertise in administration, corporate laws and policy, accounting, cost accounting, economics and statistical matters. The names and designations of senior functionaries of the Ministry are listed in **Annexure-I**.

Regional Directors (RDs)

2.2.2 The Regional Directors (RDs) supervise the working of the offices of the Registrar of Companies (RoCs) and Official Liquidators (OLs) located in their respective jurisdictions. They also maintain liaison between the respective State Governments and the Central Government on the matters relating to the administration of the act. The RDs serve as an intermediate administrative level between the Ministry and the field offices of the RoCs, RoCs-cum-OLs and OLs. The RDs also report to the Government on certain issues especially on the activities and operations of the companies. Additionally, the RDs have been delegated powers of the Ministry to discharge functions under certain provisions of the Act.

Central Registration Centre (CRC)

2.2.3 The project to transform the processing of company incorporation online, e-form was undertaken with the objective of processing and approving applications for name reservation and incorporation of a company within D+1 days (D-Date of Payment Confirmation) in line with global best practices. The Ministry rolled out the first phase of CRC in January, 2016 for processing name reservation of applicants and second phase of CRC for processing incorporation of company applicants in March 2016. This Government Process Re-engineering (GPR) exercise is in pursuance of the Ministry's objective of providing greater Ease of Doing Business (EoDB) to all the stakeholders and has resulted in faster processing of incorporation related applications, uniformity in application of rules, and eradication of discretion.

2.2.4 The time taken for processing and approving company incorporation applications used to be 5 -15 working days in June 2014. However, after introduction of an integrated SPICe+ electronic Form, time taken to incorporate a company by CRC has been reduced to about 1.5 days on an average, in cases where there are no deficiencies in the forms filed by the stakeholders. Integrated SPICe+ Form apart from name reservation and incorporation also provides the stakeholders various other mandatory services, viz; allotment of PAN, TAN, Director Identification Number (DIN), EPFO and ESIC registration number, Professional Tax Numbers for the States of West Bengal, Karnataka, Maharashtra, Shop and Establishment Number for NCT of Delhi, Bank Account Number. GST Number can also be obtained if applied for through this integrated Form.

Registrar of Companies (RoCs)

2.2.5 Registrar of Companies (RoCs) are appointed under Section 396 of the Companies Act, 2013. The RoCs, other than Registrar of CRC, CPACE, CSC and CPC, continue to have jurisdiction over the companies incorporated by CRC under the Act for all other provisions of the Act and the rules made thereunder, which may be relevant after incorporation. The Central Government exercises administrative control over these offices through respective RDs.

Official Liquidators (OLs)

2.2.6 The Official Liquidators (OLs) are appointed by the Central Government (i) under section 448(1) of the Companies Act, 1956 for performance of duties as Liquidators of the companies ordered to be wound up as per the orders of the High Court; and (ii) under section 359 (1) the Companies Act, 2013 for performance of duties as Company Liquidators of the companies ordered to be wound up as per orders of National Company Law Tribunal (NCLT) or of prescribed companies for its Summary Liquidation ordered to be wound up by the Central Government (powers delegated to the Regional Directors). The role of OL begins when he is appointed as Provisional Liquidator or the Liquidator/Company Liquidator by the Court or Tribunal or Regional Director, as the case may be. The OL functions duly observing all the requirements imposed on him under the Companies Act, 1956/Companies Act, 2013 and the Companies (Court) Rules, 1959/ Companies (Winding up) Rules, 2020, as applicable. The respective Regional Directors (RDs) exercise administrative control over OL offices.

2.2.7. With the enactment and commencement of provisions of Insolvency Resolution and Liquidation of Corporate Persons under the Insolvency and Bankruptcy Code, 2016 (the Code/IBC) and consequent amendment of certain provisions relating to winding up in the Companies Act, 2013 and notifications of Rules for transfer of pending proceedings relating to winding up from the High Courts to the NCLT, the OLs w.e.f. 1st December, 2016 are no longer being entrusted with fresh matters of winding up on the ground of inability to pay debts. Such cases are dealt for Insolvency Resolution under Section 7, 9 or 10 of the IBC, 2016 and in case of failure of insolvency resolution process, liquidation process is undertaken by insolvency professionals appointed by NCLT.

2.2.8 The duties and powers of OLs mainly relate to taking possession all books & papers and assets and properties of company under liquidation; assessing the financial position of company on the basis of the Statement of Affairs filed with him; filing of claims against debtors for realization of debts due to the company; sale of movable and immovable assets of the company taken into possession by OL; invitation of claims from creditors/workers; adjudication of claims and settlement of list of creditors; payment to creditors/workers by way of dividend; payment of subsequent interest to creditors/workers in the event of there being a surplus after payment in full of all the claims admitted to proof, settlement of list of contributories (i.e. persons liable to contribute towards the assets of the company in the event of its being wound-up) wherever necessary; instituting criminal complaints under appropriate winding up provisions and also filing misfeasance application against former directors of company for acts of omissions and breach of trust; payment of returns of capital where surplus fund remains after settling all claimant creditors and payment of subsequent interest and finally, dissolution of the company.

2.2.9 OL also files a report with the Tribunal, in case of schemes of compromise or arrangements involving winding up of any transferor company without following the process of winding up i.e. in case of mergers and amalgamations, on scrutiny of the books and papers of the company that the affairs of the company have not been conducted in a manner prejudicial to the interest of its members or to public interest. The OL also makes a report to the Central Government (power delegated to the Regional Directors) in respect of merger or amalgamation between (i)two or more small companies; (ii)between holding company and its wholly-owned subsidiary company; (iii)two or more start-up companies or (iv)one or more start-up companies with one or more small company.

Organisational set-up at Headquarters

2.3.1 The Headquarters of MCA is organized into various Divisions/ Sections/ Cells for administering and regulating various provisions of the Companies Act and other Acts administered by the Ministry. Matters relating to working and administration of Companies Act are discussed in Chapter-III, while the matters relating to the Limited Liability Partnership Act and the Competition Act are dealt with in Chapters IV and V, respectively.

2.3.2 The provisions of the Companies Act are dealt with by various Divisions/ Sections/Cells of the Ministry and various organisations under the administrative control of the Ministry. A brief description of the main activities of these sections is given below:

2.3.3 **Company Law – I Section** deals with legislative processes relating to the legal framework governing companies, Limited Liability Partnerships and notification of rules, regulations, and circulars thereunder.

2.3.4 Company Law – II Section deals with examination of inquiry, inspection and investigation reports received from field offices. After examination of these reports, prosecutions may be ordered. In addition, this section deals with the examination of the complaints relating to misuse and diversion of funds, and mismanagement of companies, etc. under the provisions of the Companies Act.

2.3.5 Company Law – III Section deals with

i. Amalgamation/Scheme of Arrangement, etc. of Government Companies;

ii. RTI applications relating to Amalgamation/Scheme of Arrangement;

iii. Parliament Questions relating to Amalgamation/Scheme of Arrangement;

iv. Reference received from office of Regional Directors u/s 230-232 & 233 of CA-13.

2.3.6 Company Law - IV (Legal) Section- The major functions of the Legal Section are:

i. Vetting of para-wise comments in which Union of India is a party;

ii. Engagement of Government Counsel on the request received from various sections of the Ministry;

iii. Monitoring of all the court cases in which Ministry is a party;

iv. Examination of applications /petitions made to the Central Government under Section 399(4) of CA-56;

v. Providing Legal advice to various Divisions of the Ministry as well as to other Ministries as and when sought.

2.3.7 Company Law – V (Policy) Section deals with policy matters for consideration of Cabinet, Cabinet Committees, and Committee of Secretaries. It also deals with declaration of institutions as Public Financial Institutions, issues relating to Capital Market, SEBI, Foreign Direct Investments, Money Laundering, Accounting Standards/Convergence with International Financial Reporting Standards (IFRS). It issues clarification/simplification of various rules and procedures prescribed under the provisions of CA-13, CA-56 and LLP Act, 2008. The Division is also responsible for launching various schemes to aid in the implementation of corporate laws, e- forms, coordinating the framing of guidelines for ensuring uniformity of practices by all field offices and processing applications for change in the venue for holding the Annual General Body Meetings of Government Companies.

2.3.8 Company Law - VII Section deals with applications under Section 196 of CA-13 read with Schedule V of CA-13 for appointment of the Managing Director/ Whole-time Director/ Manager of the Company. It also examines applications filed by public companies in the form NDH-4 either for the purpose of updation of their status as Nidhis if already declared so under the CA-56 or for the purpose of declaration of their status as Nidhis under the provisions of CA-2013 and notification thereof.

2.3.9 Cost Audit Branch: Cost Audit Branch performs the following functions under Section 148 of the Companies Act, 2013:

- i. Framing policy for Cost Accounting Records and Cost Audit;
- ii. Formulation and notification of rules in relation to
  - a. Maintenance of Cost Accounting Records by certain class of companies as may be prescribed; and
  - b. Audit of Cost Records of certain class of companies;
- iii. Rationalization of Cost Records and Audit Rules, wherever necessary;
- iv. Monitoring compliance under Section 148 and other related sections of CA-13 and Companies (Cost Records and Audit) Rules, 2014;
- v. Initiation of penal/prosecution proceedings through RoCs against the defaulting companies and Cost Auditors;
- vi. Review and examination of Cost Audit Report and seeking further information or explanation from the Companies, as required;
- vii. Conducting various studies based on Cost Audit Data filed in MCA21 system by specified companies;
- viii. Review of the Cost Auditing Standards, as submitted by the Institute of Cost Accountants of India (ICoAI) and recommending the same for approval by the Central Government.

2.3.10 Official Liquidators and Insolvency Section:

- i. **Official Liquidator Section** deals with review of the functioning of OLs carrying out winding up of companies under the provisions of CA-56/CA-13; all policy related matters pertaining to OLs; handling of complaints of stakeholders against OLs and its staff and for matters related to liquidation of companies;
- ii. **Insolvency Section** deals with matters relating to the implementation of the Insolvency and Bankruptcy Code, 2016 (Code /IBC) including amendments as per the emerging market requirements; work relating to establishment and administration of Insolvency and Bankruptcy Board of India (Board/ IBBI); monitoring of cases filed under the Code and coordination with Legal Cell for such court cases; coordination with various stakeholders; coordinating activities relating to awareness programmes about IBC, 2016; handling of complaints/grievances of stakeholders against Resolution Professionals and of matters relating to various process under the Code.

2.3.11 Research and Analysis (R&A) Division is responsible for:

- i. Managing research component of the scheme "Funding Research and Studies, Workshops and Conferences, etc." under "Corporate Data Management" (CDM); management of the scheme "Funding for Research Studies on Corporate Governance" under Expert Committee (CG-EC); and conducting internal research in the Ministry on contemporary issues of economic importance for policy-making;

ii. Preparation of Annual Report of the Ministry of Corporate Affairs and submitting it to the Standing Committee on Finance to enable it to consider the Demand for Grants of the Ministry;

iii. Preparation of Annual Report on the Working and Administration of CA-13 as prescribed under Section 461 of the CA-13 and laying it before each House of Parliament;

iv. Preparation of Monthly Newsletter incorporating therein a column wherein a topic pertaining to corporate governance is discussed in detail and summary of monthly achievements along with review of Corporate Sector with respect to company statistics, major events, notifications, circulars, and a snapshot of the Indian Economy;

v. Serving as the interface between the Ministry of Corporate Affairs and Financial Stability and Development Council (FSDC) Secretariat, Department of Economic Affairs, Ministry of Finance (MoF);

vi. Providing essential inputs for preparation of India Yearbook (prepared by Ministry of Information and Broadcasting) as well as the Economic Survey (prepared by MoF).

vii. Coordinating and guiding the concurrent survey of the implementation of the Prime Minister Internship Scheme (PMIS) Pilot Project to enable learnings from the above to be factored in implementation processes and also inform policy decisions if required.

2.3.12 Statistics Division is responsible for:

i. Sharing statistical information on the corporate sector with Central Ministries and organisations such as National Statistical Office (NSO), Reserve Bank of India (RBI) and others, as per the requirements;

ii. Providing data updates through API to the Open Government Data (OGD) platform India (data.gov.in) and others including customised dashboard accesses to the Enforcement Agencies, as per the requirements;

iii. Generating reports for different divisions of the Ministry;

iv. Examining and resolving issues relating to improvements of corporate statistics generated from the MCA21 portal;

v. Monitoring the Central Sector Scheme of Corporate Data Management;

vi. Providing Analytics/ Responses/ Insights for the Parliament questions, RTI and other queries related to Corporate and CSR Data.

2.3.13 Corporate Social Responsibility (CSR) Cell was constituted on May 9, 2014 and is entrusted with the responsibility of:

i. Proposing amendments to CSR Rules and Schedule VII of the CA-13;
ii. Issuing clarifications to references from stakeholders regarding CSR provisions under Section 135 of the CA-13 Schedule VII of the Companies Act, 2013 and Companies (CSR Policy) Rules, 2014;
iii. Coordinating with Department of Public Enterprises (DPE) and other Administrative Ministries for implementation of CSR by CPSEs;
iv. Doing data analysis relating to CSR expenditure of companies.

2.3.14 Investor Grievance Management Cell (IGMC) earlier known as the Investor Protection Cell (IPC), is mandated to deal with investors' grievances. Its function is to take up the grievances of the investors with the concerned companies through the RoCs for their expeditious redressal. It also coordinates with various other organisations/departments like RBI, Department of Economic Affairs and Securities and Exchange Board of India (SEBI), etc. for redressal of investors' complaints of these agencies. The investors/depositors can lodge their complaints with concerned RoCs on-line, through MCA21 portal.

2.3.15 Administration-I deals with establishment matters relating to - all Group A officers at the Headquarters filled under Central Staffing Scheme; all Group A officers of the encadred posts of Indian Economic Service (IES), Indian Statistical Service (ISS), Indian Cost Accounts Service and Central Secretariat Official Language (CSOL); Officers of the Central Secretariat Service (CSS); Officers of the Central Secretariat Stenographer Service (CSSS); Officers of the Central Secretariat Clerical Service (CSCS); General Central Service Group 'B' and 'C' posts at Headquarters; Hindi encadred posts in Central Secretariat Official Language Service. It also deals with creation of posts and establishment matters relating to the Office of the Minister of State for Corporate Affairs and creation/continuation of posts in Headquarters [other than Indian Corporate Law Service (ICLS) posts], along with other administrative responsibilities.

2.3.16 Administration-II deals with all establishment matters relating to the officers of ICLS (Gr. 'A') and other subordinate grades of ICLS, training and capacity building of ICLS officers and its feeder cadre, framing/ amendment of Recruitment/ Service Rules for the ICLS and its feeder cadre, recruitment of Gr. 'A' & 'B' officers in ICLS and its subordinate grades, monitoring of APARs of Gr 'A' and its feeder cadre, disposal of APAR related representations of Gr 'A' and its feeder cadre, review of officers of ICLS and its subordinate grades for ensuring probity measures among government employees under FR 56(j).

2.3.17 Administration-III deals with establishment, personnel, financial matters and all policy issues relating to SFIO which require approval of the Central Government; framing and amendment of recruitment rules of various posts in SFIO.

2.3.18 Administration-IV deals with establishment, personnel and financial matters relating to NCLT and NCLAT which requires approval of the Central Government.

2.3.19 International Cooperation Section plays a key role in coordinating and organizing interactions with counterpart organizations of other countries, International Organizations such as Corporate Registers Forum (CRF), Global Reporting Initiative (GRI), International Association of Insolvency Regulators (IAIR), Organization for Economic Co-operation and Development (OECD), approval of International MoUs, and other related matters.

2.3.20 Competition Section deals with matters relating to the enforcement of Competition Act; the formation of Competition Policy; all establishment, personnel and financial matters of CCI requiring approval of Central Government; appointment of Chairperson and Members in CCI as well as Director General and other officials of CCI and the condition of service thereof.

2.3.21 Infrastructure Section is assigned the task of (i)purchase of land and buildings for the Ministry and its field offices, (ii)capital works for construction/ renovation/ maintenance of all buildings (old and new) for the Ministry and its field offices; and (iii)finalization of agreements for hiring of buildings on rent at the Headquarters and field locations.

2.3.22 Vigilance Wing obtains factual information with regard to complaints received and conducts preliminary enquiry against the employees alleged for involvement in corruption/ misconduct. It also makes efforts to streamline the existing procedures so as to minimize the scope of corruption and to ensure probity among government employees.

2.3.23 Official Language Section undertakes the implementation of the Official Language Act,1963 and Rules made thereunder; translation of documents issued under Section 3(3) of Official Language Act from English to Hindi and vice versa. It is responsible for the work related to the Parliamentary Committee on the Official Language, conduct of the meetings of Official Language Implementation Committee, and for implementation of decisions taken by Hindi Advisory Committee. It administers the Hindi Teaching Scheme, as well as the conduct of Hindi Workshops. It also offers suggestions for the progressive use of Hindi in the Ministry.

2.3.24 RTI Monitoring Cell functions as a conduit between the applicant/ appellant and the CPIO/Appellate Authority apart from being a repository of all RTI related information. The Cell is also responsible for implementing various sections of the RTI Act, where an obligation has been cast on the Public Authority. The Cell also monitors the progress of all RTI applications and appeals to ensure its disposal within the prescribed time limits.

2.3.25 MCA Library houses a comprehensive collection of approximately 50,000 books, along with CDs, Databases, e- Journals, Parliamentary Debates catering to the information needs of Ministry officials, affiliate offices, and research scholars across India. Fully automated and powered by Koha, the library ensures efficient access and management of its resources. Over the years, the MCA Library has meticulously curated an extensive collection covering diverse topics, including comprehensive legal subjects, of Corporate Laws, as well as literature and fiction (both English and Hindi), Good Reads. Additionally, it also includes the collections of AIR since 1914, Privy Council etc. As an initiative to make available the latest research trend to all the ministry official, the MCA Library has now subscribed to the JSTOR, the digital library of academic Journals, books and primary sources.

2.3.26 PMIS Cell: PMIS Cell has been established to oversee the design and implementation of PM Internship Scheme. The PMIS Cell is inter alia tasked with the following functions:

i. **Formulation of Guidelines**: Developing and updating guidelines that inter alia define the scope, eligibility, and objectives of the PM Internship Scheme.

ii. **Coordination with Stakeholders**: Ensuring smooth coordination with various ministries, government departments, and private sector companies for effective implementation of the scheme.

iii. **Portal Development and Maintenance**: Developing and maintaining the PM Internship Portal that serves as the central hub for applications, communications, and tracking the progress of the internship scheme.

iv. **IEC Activities**: Conducting Information, Education, and Communication (IEC) activities to raise awareness and inform stakeholders about the opportunities and benefits of the scheme.

v. **Data Collection and Analysis**: Collecting and analyzing data related to the scheme to assess effectiveness and identify areas for improvement.

Statutory Bodies/ Quasi-Judicial Bodies/ Autonomous Bodies

National Company Law Tribunal (NCLT)

2.4.1 NCLT is a Quasi-Judicial Body and it has been constituted under Section 408 of the CA-13(18 of 2013) w.e.f. June 1, 2016 and by virtue of Section 466(1) of the CA-13 the erstwhile Company Law Board constituted under the provisions of the CA-56 stood dissolved, with effect from that date.

2.4.2 The Principal Bench is located at New Delhi and jurisdictional benches at 15 locations viz; New Delhi, Ahmedabad, Amaravati, Allahabad, Bengaluru, Chandigarh, Chennai, Cuttack, Guwahati, Jaipur, Indore, Kochi, Hyderabad, Kolkata, and Mumbai. The jurisdiction of these benches is given in **Annexure-V.**

National Company Law Appellate Tribunal (NCLAT)

2.5.1 NCLAT is a Quasi-Judicial Body and it has been constituted under Section 410 of the CA-13 vide Notification No. 1933 (E) dated June 1, 2016, for hearing the appeals against the orders of the National Company Law Tribunal.

2.5.2 Earlier, the Competition Appellate Tribunal (COMPAT) was established on October 14, 2003, under the Competition Act, 2002, with powers to entertain appeals against directions or decisions of CCI, and to adjudicate on claims for compensation that may arise from the findings of the Commission. COMPAT has ceased to exist effective from May 26, 2017. The appellate function under the Competition Act, 2002 is now conferred to the NCLAT.

2.5.3 NCLAT is also the appellate authority against the orders of the NCLTs and IBBI under the IBC, 2016 w.e.f. December 1, 2016, and the appellate authority against the orders of the NFRA under the Companies Act, 2013 w.e.f. May 7, 2018.

2.5.4 NCLAT has two Benches, one is situated in New Delhi and the other is in Chennai.

Competition Commission of India (CCI)

2.6.1 CCI is a Statutory Body and it was established in March 2009 under the Competition Act, 2002 for the administration, implementation and enforcement of the Act. The objectives of the CCIeare:

i. To prevent practices having adverse effect on competition;

ii. To promote and sustain competition in markets;

iii. To protect the interests of consumers; and

iv. To ensure freedom of trade carried on by other participants in markets, in India, and for matters connected therewith or incidental thereto.

2.6.2 CCI has powers to regulate mergers or combinations, and to reverse mergers or combinations, if it is of the opinion that such mergers or combinations have, or is likely, to have an 'appreciable adverse effect' on competition in India.

Serious Fraud Investigation Office (SFIO)

2.7.1 SFIO is a Statutory Body and it was set up by the Government of India vide Resolution No. 45011/16/2003-Admn.I dated 02.07.2003 and was notified under sub-section (1) of Section 211 of the Companies Act, 2013, vide Government of India, Gazette Notification No. S.O. 2005(E) dated 21.07.2015. It is a multi-disciplinary organization under the Ministry, of experts in the fields of accountancy, forensic auditing, law, information technology, investigation, company law, capital market, banking and taxation, etc., for detecting and prosecuting or recommending for prosecution white collar crimes/frauds.

2.7.2 SFIO is headed by a Director as Head of the Department not below the rank of Joint Secretary to the Government of India. The Director is assisted by Additional Directors, Joint Directors, Deputy Directors, Senior Assistant Directors, Assistant Directors, Senior Prosecutors, Prosecutors and other secretarial staff. The Headquarter of SFIO is at New Delhi, and it has five Regional Offices at Mumbai, New Delhi, Chennai, Hyderabad, and Kolkata.

2.7.3 Investigation into the affairs of a company is assigned to SFIO, where Government is of the opinion that it is necessary to investigate into the affairs of a company:

i. On receipt of a report of the Registrar or Inspector under Section 208 of the

Companies Act, 2013;

ii. On intimation of a special resolution passed by a company that its affairs are required to be investigated;

iii. In the public interest; or

iv. On request from any department of the Central Government or a State Government.

2.7.4 A list of notified designated Special Court for Various States/UTs is at **Annexure-XIII.**

Indian Institute of Corporate Affairs (IICA)

2.8.1 IICA is an autonomous institute and it was set up by the MCA as a Society on September 12, 2008 under the Societies Registration Act, 1860. which works under the aegis of the MCA to deliver opportunities for research, education, and advocacy. It is also a think tank that curates a repository of data and knowledge for policymakers, regulators as well as other stakeholders working in the domain of corporate affairs. The structure of IICA consists of five Schools and eleven Centres.

i. School of Competition Law and Market Regulation

ii. School of Corporate Law

iii. School of Corporate Governance and Public Policy

iv. School of Business Environment

v. School of Finance

The above schools focus on niche activities through the following eleven centres:

i. Centre for Insolvency & Bankruptcy

ii. Centre for Independent Directors

iii. Centre for Business & Human Rights

iv. Centre for Excellence in CSR and Corporate Citizenship

v. Centre for Micro, Small & Medium Enterprises

vi. Centre for Institutional Partnerships & Corporate Communication

vii. Centre of Excellence in Alternative Dispute Resolution

viii. Centre of Board Excellence and Leadership

ix. Forum of Indian Regulators (FOIR) Centre

x. Centre for Regulatory Governance

xi. Centre for Responsible Business Advisory

2.8.2 IICA maintains a central registry of all independent directors and also organises continuing professional development courses. This inculcates greater levels of professionalism among independent directors and empowers them to more effectively discharge their functions in a rapidly changing business environment.

Investor Education and Protection Fund Authority (IEPFA)

2.9.1 IEPF is a Statutory Body and it was set up under Section 125 of the CA-13 with the objective of promoting investor education, awareness, protection and to make refund of claim to the investors. The fund is maintained under the Consolidated Fund of India. As per Section 124(6) of the Act, all shares in respect of which dividend has not been paid or claimed for seven consecutive years or more shall be transferred by the company in the name of Investor Education and Protection Fund.

2.9.2 For administration of the Fund, in accordance with the provision of Section 125(5) of the Act, the Government of India has established IEPFA which became functional on September 7, 2016. As per the Investor Education and Protection Fund Authority (Appointment of Chairperson and Members, holding meetings and provision for offices and officers) Rules, 2016, the IEPFA will have a chairperson, six members and a Chief Executive Officer. The Secretary, MCA is ex-officio Chairperson of the Authority. The IEPFA has been entrusted with the responsibility to make refunds of amounts like unclaimed dividends, matured deposits, matured debentures and shares transferred to it and to promote investor education, awareness, and protection.

Insolvency and Bankruptcy Board of India (IBBI)

2.10.1 IBBI is a Statutory Body and it was established on October 1, 2016 under the Insolvency and Bankruptcy Code, 2016 (IBC/Code). It is a key pillar of the ecosystem responsible for implementation of the Code. It regulates service providers as well as processes under the Code. Section 196 of the Code enumerates the functions of the Board. The Board has broadly three sets of functions as presented below

i. **Quasi-legislative functions-** The Board makes regulations for market intermediaries and processes;

ii. **Executive functions**- The Board to register and regulate service providers for the insolvency process and take measures for professional development and expertise for the market intermediaries through education, examination, training and continuous professional education;

iii. **Quasi-judicial functions** – which requires it to adjudicate service providers to ensure their orderly functioning.

2.10.2 IBBI has regulatory oversight over Insolvency Professionals (IPs), Insolvency Professional Agencies (IPAs), Information Utilities (IUs), Registered Valuers (RVs), and Registered Valuer Organisations (RVOs). It lays down regulations to govern processes, namely, Corporate Insolvency Resolution Process (CIRP), Corporate Liquidation, Voluntary Liquidation, Pre-Packaged Insolvency Resolution Process (PPIRP), Individual Insolvency Resolution Process, and Individual Bankruptcy Process under the Code.

2.10.3 As on September 2024 3 IPAs, 4,425 IPs (Individual), 83 Insolvency Professional Entities as Insolvency Professionals, 123 Insolvency Professional Entities (IPEs), 15 RVOs, 5,667 RVs, 113 Valuer Entities and 1 IU (National e-Governance Services Limited) have been registered with IBBI.

Professional Institutes (Pis)

2.11.1 PIs are Statutory Bodies set up under the Act of Parliament. The Ministry administers laws regulating the professions of Chartered Accountancy (The Chartered Accountants Act, 1949); Costs Accountancy (The Cost and Works Accountant Act, 1959); and Company Secretaries (The Company Secretaries Act, 1980), through three Professional Institutes, namely, The Institute of Chartered Accountants of India (ICAI), The Institute of Cost Accountants of India

(ICoAI) and The Institute of Company Secretaries of India (ICSI), respectively. Matters relating to PIs are discussed in Chapter-VIII.

National Financial Reporting Authority (NFRA)

2.12.1 NFRA is a statutory body constituted under Section 132 of CA-13. It was constituted on October 1, 2018 to protect the public interest and the interests of investors, creditors and others associated with the companies or bodies corporate by establishing high quality standards of accounting and auditing and exercising effective oversight of accounting functions performed by the companies and bodies corporate and auditing functions performed by auditors. The composition of NFRA is placed at **Annexure -XII.**

Indian Corporate Law Service Academy (ICLSA)

2.13.1 ICLSA was set up by the Ministry of Corporate Affairs on September 12, 2008, originally as a school of IICA but was granted financial autonomy from IICA by creation of a separate budget head under the Consolidated Fund of India in March 2018. ICLSA is the Central training institute under the Ministry of Corporate Affairs to impart training to the Indian Corporate Law Service (ICLS) officers and its feeder Cadres. The Academy is headed by an ICLS officer of the rank of Directore/ Joint Director who reports to the Additional Secretary in the Ministry.

2.13.2 The ICLSA is responsible for capacity building of the ICLS Officers and its subordinate feeder cadre officials, and inter-alia, has the following responsibilities:

i. To conduct mandatory induction training for ICLS Probationary Officers [PO(s)], who are recruited to ICLS through Civil Service Examination (CSE).

ii. To conduct an Intensive Training Programme for the Group B officials of MCA promoted to ICLS.

iii. To organise Mandatory Mid-Career training programme(s) for in-service ICLS Officers, linked to their promotion in various phases.

iv. To organise various mandatory training programme for Subordinate / Feeder cadre.

v. To organise other non-mandatory short-term trainings for In-service ICLS Officers, based on demand or recent amendments in law.

vi. To organise / conduct workshop(s) and seminar(s) on latest issues on corporate law etc.

vii. To organise other training programmes as directed by the Ministry from time to time.

viii. To liaison with various renowned institutions and organization across the nation for imparting trainings to ICLS officers and its subordinate Cadres.

CHAPTER-III

THE COMPANIES ACT, 2013/1956 AND ITS ADMINISTRATION

3.1.1 The Companies Act regulates a wide range of activities, including incorporation, operationalization, governance, liquidation and winding up of companies. Regulation of corporate governance and obligations of companies towards their stakeholders; conditions governing the issue of preferential shares, private placements and distribution of dividends; statutory disclosure obligations; powers of inspection, investigation and enforcement and company processes such as mergers/ amalgamations/ arrangements/reconstructions, etc., constitute the main focus of the Act.

Simplification of Rules and Procedures

3.2.1 During the period April 1, 2024 to November 30, 2024, the Ministry issued **16** Notifications and **4** Circulars (**Annexure II & III** respectively).

Registration of Companies

3.3.1 As on November 30, 2024, a total of 27,76,023 companies were registered in the country. Out of these, 17,91,628 companies were active (comprising of 17,18,622 private companies and 73,006 public companies). A majority of the active companies (about 80.16%) were operating in activities covered under five broad heads, namely, Business Services (27.16%), Manufacturing (19.69%), Trading (13.18%), Community, Personal and Social Services (12.53%), Construction (7.60%). **Table 3.1** and **Chart 3.1** provide Economic Activity/Sector-wise Distribution of Active Companies as on November 30, 2024.

Table 3.1

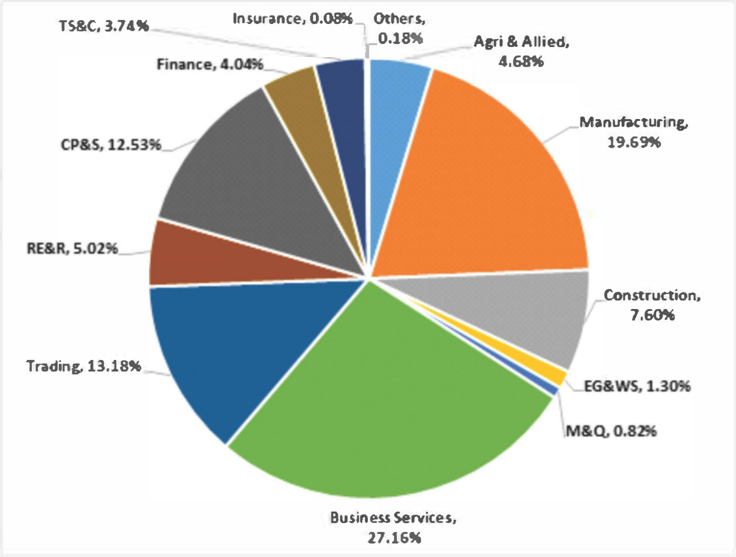
Economic Activity/Sector-wise Distribution of Active Companies as on November 30, 2024

(Paid Up Capital in₹ Crore)

Sl. No	Economic Activity	Private		Public		Total	
		Number	Paid Up Capital	Number	Paid Up Capital	Number	Paid Up Capital
I	**Agriculture and Allied Activities**	**81,434**	**31,884.38**	**2,388**	**23,307.54**	**83,822**	**55,191.92**
II	**Industry**	**5,01,907**	**10,63,715.90**	**24,881**	**21,60,806.59**	**5,26,788**	**32,24,522.49**
1.	*Manufacturing*	3,34,682	6,84,373.32	18,045	9,51,490.99	3,52,727	16,35,864.31
i	*Metals & Chemicals, and products thereof*	1,13,206	2,53,353.87	7,803	3,05,248.10	1,21,009	5,58,601.97
ii	*Machinery & Equipments*	79,431	2,88,706.33	3,537	5,22,677.11	82,968	8,11,383.44
iii	*Textiles*	39,583	38,931.92	2,483	44,093.83	42,066	83,025.75
iv	*Food stuffs*	53,756	58,894.47	2,495	46,369.77	56,251	1,05,264.24

Sl. No	Economic Activity	Private		Public		Total	
		Number	Paid Up Capital	Number	Paid Up Capital	Number	Paid Up Capital
v	*Paper & Paper products, Publishing, printing, and reproduction of recorded media*	18,948	15,871.16	799	10,688.95	19,747	26,560.11
vi	*Others*	22,321	21,209.40	561	20,081.27	22,882	41,290.67
vii	*Leather & products thereof*	3,876	4,813.37	187	1,156.51	4,063	5,969.88
viii	*Wood Products*	3,561	2,592.82	180	1,175.45	3,741	3,768.27
2.	*Construction*	1,31,893	1,73,059.85	4,194	2,54,126.10	1,36,087	4,27,185.95
3.	*Electricity, Gas & Water companies*	21,426	1,64,734.32	1,928	8,99,143.59	23,354	10,63,877.91
4.	*Mining & Quarrying*	13,906	41,548.41	714	56,045.91	14,620	97,594.32
III	**Services**	**11,32,468**	**10,97,592.59**	**45,381**	**14,61,442.75**	**11,77,849**	**25,59,035.33**
1.	*Business Services*	4,77,071	4,45,965.98	9,486	6,21,783.32	4,86,557	10,67,749.30
2.	*Trading*	2,30,438	2,45,930.26	5,707	71,475.43	2,36,145	3,17,405.69
3.	*Real Estate and Renting*	87,303	97,912.05	2,652	38,517.14	89,955	1,36,429.19
4.	*Community, personal & Social Services*	2,18,779	1,00,011.54	5,796	1,74,885.28	2,24,575	2,74,896.82
5.	*Finance*	52,305	1,41,316.89	20,029	3,15,654.54	72,334	4,56,971.43
6.	*Transport, storage and Communications*	65,366	63,534.63	1,559	1,88,167.17	66,925	2,51,701.80
7.	*Insurance*	1,206	2,921.24	152	50,959.87	1,358	53,881.11
IV	**Others**	**2,813**	**3,701.37**	**356**	**3,837.38**	**3,169**	**7,538.75**
Grand Total		**17,18,622**	**21,96,894.23**	**73,006**	**36,49,394.26**	**17,91,628**	**58,46,288.49**

Chart 3.1 Economic Activity/Sector-wise distribution of Active Companies as on November 30, 2024



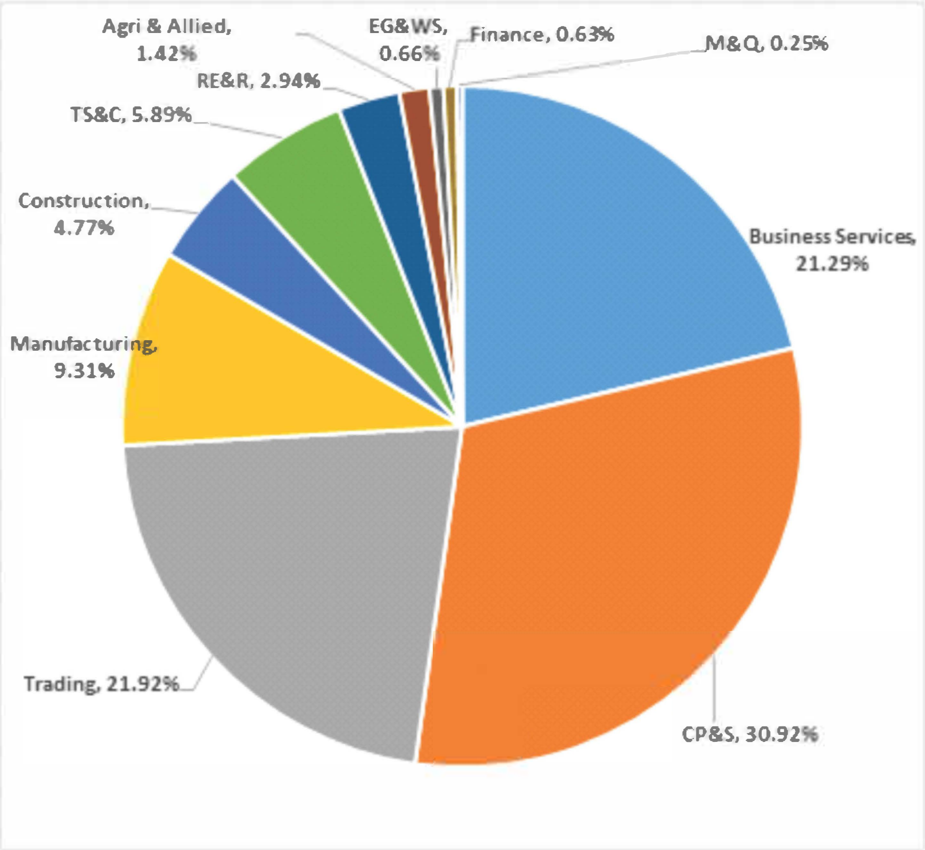
[*CP&S - Community, Personal and Social Services, *Agri & Allied - Agriculture and Allied Activities, *RE&R - Real Estate and Renting, *TS&C – Transport, Storage and Communications, *EG&WS - Electricity, Gas and Water Supply Companies, *M&Q-Mining and Quarrying]

3.3.2 During the period of April 1, 2024 to November 30, 2024, a total of 1,12,926 companies were registered with a collective paid-up capital of ₹ 13,092.82 crore. of these, 69 were Government Companies with paid-up capital of ₹ 162.94 crore and 1,12,857 were non-government companies with paid-up capital of ₹ 12,929.89 crore.

One Person Companies

3.3.3 The CA-13 introduced the concept of One Person Company (OPC) in India. During the period from April 1, 2024 to November 30, 2024 a total of 7,303 One Person Companies were registered with a collective paid up capital of ₹ 63.87 crore. **Chart 3.2** provides sector wise distribution of OPCs registered during this period.

Chart 3.2 Sector-wise distribution of OPCs during April 1, 2024 to November 30, 2024



[*CP&S - Community, Personal and Social Services, *Agri & Allied - Agriculture and Allied Activities, *RE&R - Real Estate and Renting, *TS&C – Transport, Storage and Communications, *EG&WS - Electricity, Gas and Water Supply Companies]

Foreign Companies

3.3.4 As on November 30, 2024, the total number of foreign companies registered in the country were 5,205 and out of them 3,277 foreign companies were active. During the period from April 1, 2024 to November 30, 2024, a total of 36 Foreign Companies were registered under the CA-13.

Appointment of managerial personnel and their remuneration

3.4.1 Section 196 r/w Schedule V of CA-13 deals with the provisions of appointment and remuneration of managerial personnel in a company. 59 applications were received during the period from April 1, 2024 to November 30, 2024, 113 applications were disposed of and 29 applications were under various stages of examination (including applications pending as on March 31, 2024).

Nidhi Companies

3.5.1 Under Section 406 of CA-13, Nidhi Companies need to get their status updated/declared as Nidhi Company, as the case be. Companies need to apply in form NDH-4 before the Central Government. During the period from April 1, 2024 to November 30, 2024, 183 NDH-4 applications were received and 703 applications were disposed of during the period (including application pending as on 31.03.2024).

Liquidation of Companies under CA-56/CA-13

3.6.1 As on April 1, 2024, a total of 3,278 companies were under liquidation process under CA-56. During the period from April 1, 2024 to November 30, 2024, 15 companies were further added to the liquidation process. Out of the total 3,293 companies, 148 companies were dissolved during the period. As on November 30, 2024, a total of 3,145 companies were undergoing liquidation process.

3.6.2 As on April 1, 2024, a total of 276 companies were under liquidation process under CA-13. During the period from April 1, 2024 to November 30, 2024, 22 companies were further added to the liquidation process. Out of the total 298 companies, 1 company was dissolved during the period. As on November 30, 2024, a total of 297 companies were undergoing liquidation process.

Merger of Companies

3.7.1 Under Sections 230-232 of CA-13, regarding notices received from the Tribunal, 340 applications were pending as on April 1, 2024. During April 1, 2024 to November 30, 2024, a total of 682 applications were received and 713 applications were disposed of. As on November 30, 2024, a total of 309 applications were pending as detailed in **Table 3.2**.

3.7.2 Under Section 233 of CA-13, regarding amalgamation of small companies or between holding company and its wholly-owned subsidiaries, 121 applications were pending as on April 1, 2024. A total of 363 applications were received and 431 applications were disposed of from April 1, 2024 to November 30, 2024. As on November 30, 2024, a total of 53 applications were pending as detailed in **Table 3.2**.

Table 3.2
Merger of Companies during the period from April 1, 2024 to November 30, 2024

Sl. No	Subject	No. of applications pending as on 01.04.2024	No. of applications received during the period 01.04.2024 to 30.11.2024	Total (3+4)	No. of applications disposed of during the period 01.04.2024 to 30.11.2024	No. of applications pending as on 30.11.2024
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1.	Sections 230 -232 of the Companies Act, 2013 (Notices received from the Tribunal)	340	682	1,022	713	309
2.	Section 233 of the Companies Act, 2013 (Amalgamation of small companies or between holding and its wholly owned subsidiaries)	121	363	484	431	53

3.7.3 Under Sections 230-232 of CA-13, regarding Compromises, Arrangements and Amalgamation, 6 applications were pending as on April 1, 2024. A total of 3 applications were received and 2 applications were disposed of from April 1, 2024 to November 30, 2024. As on November 30, 2024, a total of 7 applications were pending as detailed in **Table 3.3**.

Table 3.3.
Applications received by Central Government in case of Government Companies – Compromises, Arrangements and Amalgamation during the period from April 1, 2024 to November 30, 2024

Sl. No	Subject	No. of applications pending as on 01.04.2024	No. of applications received during the period 01.04.2024 to 30.11.2024	Total (3+4)	No. of applications disposed of during the period 01.04.2024 to 30.11.2024	No. of applications pending as on 30.11.2024
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1.	Sections 230 - 232 of the Companies Act, 2013 (Compromises, Arrangements and Amalgamation)	6	3	9	2	7

Cost Audit Branch

3.8.1 During the period from April 1, 2024 to November 30, 2024, MCA took on record 11,971 e-Forms (CRA-2) relating to the appointment of Cost Auditors.

3.8.2 Further, the number of Cost Audit Reports taken on record during the period from April 1, 2024 to November 30, 2024 stood at 9,591 e-Forms (CRA-4).

Inquiry

3.9.1 Power to call for information, explanation or documents relating to a company is vested with the RoC under Sub-Sections (1), (2) and (3) of the Section 206 of the CA-13.

3.9.2 Inquiries [under Section 206(4) of CA-13]: If the RoC is satisfied based on the information available with or furnished to him or on a representation made to him by any person that (i)the business of a company is being carried on for fraudulent or unlawful purpose or not in compliance with the provisions of the Act or (ii)if the grievances of investors are not being addressed, then the RoC may under Section 206(4) of the CA-13 call for information or explanation from the company.

3.9.3 If the Central Government is satisfied that the circumstances so warrant, it may either direct the RoC or an inspector appointed by it for the purpose of carrying out the inquiry under Section 206(4).

3.9.4 The following statement shows the number of reports of inquiries received from the RoC by the Ministry during the years 2019-20 to 2024-25.

Table 3.4

Number of Inquiry reports received in the Ministry during 2019-20 to 2024-25

Year	Inquiry Reports
01.12.2019 to 19.11.2020	19
01.11.2020 to 31.10.2021	328
01.11.2021 to 31.10.2022	735
01.01.2023 to 31.03.2024	1,297
01.04.2024 to 30.11.2024	414

Inspection

3.10.1 The Central Government may, if it is satisfied that the circumstances so warrant, direct inspection of books and papers of a company by an inspector appointed by it for the purpose.

3.10.2 Inspections under Section 206(5) are generally ordered after consideration of material in one or more of the following circumstances:

i. Violations/irregularities noticed on examination of documents filed in the offices of the RoCs;

ii. Qualifications in Auditor's reports;

iii. Complaints received in the Ministry or in its field offices about manipulation of books, division & siphoning of funds, mismanagement, delay in transfer of shares/ debentures, delay in payment of dividend, non-payment of deposits or interest thereon, etc;

iv. References received from other regulatory authorities.

3.10.3 Inspections are broadly undertaken to serve one or more of the following objectives of verification:

i. Whether there is due compliance by companies with various provisions of the Companies Act;

ii. Whether the company's financial statements disclose a true and fair view of the company's state of affairs and whether the financial statements have been prepared in accordance with the various Accounting Standards notified by the Central Government under Section 133 of the CA-13;

iii. Whether requisite disclosures as specified in Schedule II to the CA-56 as well as Accounting Standards prescribed by the Central Government under Section 133 of the CA-13 have been made in the financial statements;

iv. Whether the company's funds have been diverted or misappropriated or managerial personnel have misused fiduciary position for any personal gain;

v. Whether there are acts of mismanagement or oppression of the minority shareholders that adversely affect the interest of the company's stakeholders, or which may merit the company to be wound up on just and equitable grounds under the Act;

vi. Whether the funds raised by the company through public issues/private placements have been utilized for the purposes for which the same were raised;

vii. Whether statutory auditors have carried out their duties diligently while certifying that the accounts reflect a true and fair view of the financial position of the company.

3.10.4 The total number of inspection reports received by the Ministry during the years 2019-20 to 2024-25 is given in **Table 3.5** below:

Table 3.5
Number of Inspection reports received inthe Ministry during 2019-20 to 2024-25

Year	No. of Inspection Reports
01.12.2019 to 19.11.2020	107
01.12.2020 to 30.10.2021	111
01.11.2021 to 31.10.2022	225
01.01.2023 to 31.03.2024	453
01.04.2024 to 30.11.2024	46

Investigation

3.11.1 Power to order investigation in the affairs of the company is vested with the Central Government under Section 210 of the CA-13 [corresponding to Section 235 of the CA-56], if it is of the opinion that it is necessary to do so:

i. Based on a Report of RoC or Inspector, under Section 208;

ii. Based on a Special Resolution of a company that its own affairs need to be investigated;

iii. Based on Judicial Orders;

iv. In the public interest.

3.11.2 The Central Government may appoint one or more persons as Inspectors for carrying out investigation under Section 210.

3.11.3 The total number of investigation reports received by the Ministry during the years 2019-20 to 2024-25 is given in **Table 3.6 below:**

Table 3.6
Number of Investigation reports received in the Ministry during 2019-20 to 2024-25

Year	No. of Investigation Reports
01.12.2019 to 19.11.2020	13
01.12.2020 to 30.10.2021	17
01.11.2021 to 31.10.2022	20
01.01.2023 to 31.03.2024	71
01.04.2024 to 30.11.2024	18

Complaint

3.12.1 Complaints of various nature against the companies received by the Ministry are forwarded/ marked to the RoCs for taking appropriate action and submission of report.

3.12.2 On the basis of reports received from RoCs, in appropriate cases, the Ministry takes suitable action, which include:

i. Issuing orders for inquiry of Balance Sheets and other documents of companies under Section 206(4) of CA-13;

ii. Inspecting of books of accounts and records to the RD under Section 206(5) of the Act;

iii. Investigating into the affairs of Companies under Sections 210 and 212 of the Act;

iv. Launching prosecutions where violation of the provisions of the CA-56 and/or CA-13 are prima facie noticed; and

v. Referring the matters to other Ministries/Departments of the Government of India including, SEBI, RBI, etc.

Prosecution

3.13.1 Prosecutions are filed by the jurisdictional RoCs against the companies for violations of various provisions of the Companies Act. As on April 1, 2024, a total of 28,624 prosecutions, were pending throughout the country with various courts at different stages. During the period from April 1, 2024 to November 30, 2024, a total of 1,087 fresh prosecutions were filed. Out of the total 29,711 cases, 1,311 prosecutions were disposed of during the period. As on November 30, 2024, a total of 28,400 prosecutions were pending.

3.13.2 The Ministry has undertaken a drive to identify and withdraw prosecutions related to serious non-compoundable offences. In order to unclog the courts as well as foster the growth of the corporate sector in India, while maintaining a healthy corporate governance framework, the Ministry has taken a decisive step to withdraw adjudicable and compoundable cases pending in courts for long. This is a step towards its objective of promoting EoDB and in furtherance of decriminalization of compoundable offences under CA-13.

3.13.3 This Ministry has carried out two withdrawals of prosecutions. As a consequence of Special Drive for Clearance Drive - I, carried out in the year 2017, a total of 14,274 prosecutions were withdrawn. Further, in the Special Drive for Clearance Drive- II, ministry decided to withdraw another 7,338 prosecution cases. The actual withdrawal is subject to the order passed by the trial court before whom the cases are pending.

Investigations and Prosecution by Serious Fraud Investigation Office (SFIO)

3.14.1 During the period from April 1, 2024 to November 30, 2024, 14 (including 7 main reports and 7 other reports) investigation reports involving 32 companies were submitted by SFIO to the Ministry. Further, the details of prosecutions, complaints and other cases filed in various designated courts, Statutory Bodies and Tribunal by SFIO are given in **Table 3.7** below:

Table 3.7
No. of prosecutions, complaints, and other cases filed in various designated courts, Statutory Bodies and Tribunal

Sl. No.	Period	No. of P rosecutions, Complaints and other cases Filed			Total
		Company Law/IPC	ICAI /ICSI	NCLT	
1.	From 01.04.2024 to 30.11.2024	21	29	27	77

National Company Law Tribunal

3.15.1 The NCLT consists of a President and such number of other Judicial and Technical Members as may be required. The details of the present composition of NCLT have been annexed at **Annexure-IV**. During the period, 30 courts remained in function in 16 Benches (including a Principal Bench at New Delhi) at 15 locations. The list of Benches is annexed as **Annexure-V**.

3.15.2 The filing, disposal and pendency of cases in NCLT during the period from April 1, 2024 to November 30, 2024 is given in **Table-3.8** below:

Table 3.8
Filing/disposal of cases in NCLT during April 1, 2024 to November 30, 2024

Cases	M&A	IBC*	Others	Total
Pending at the beginning	1,034	11,677	7,082	19,793
Fresh filed	1,123	3,431	1,366	5,920
Disposed	1,094	2,651	1,297	5,042
Pending at the end	**1,063**	**12,457**	**7,151**	**20,671**

*Fresh filed include those received on transfer from the High Court but do not include those received on transfer from other NCLT Benches.

National Company Law Appellate Tribunal

3.16.1 The National Company Law Appellate Tribunal (NCLAT) was constituted under Section 410 of the CA-13 for hearing appeals against the orders passed by the National Company Law Tribunal(s), w.e.f. June 1, 2016. The composition of NCLAT is annexed in **Annexure IV**.

3.16.2 The NCLAT is the Appellate Tribunal for hearing appeals against the orders passed by NCLT(s) under Section 61 of the IBC, 2016 w.e.f. December 1, 2016. NCLAT is also the Appellate Tribunal to hear appeals against the orders passed by the Insolvency and Bankruptcy Board of India under Sections 202 and 211 of IBC.

3.16.3 It is also the Appellate Tribunal to hear and dispose of appeals against any directions issued or decision made, or order passed by the CCI – as per the amendment brought to Section 410 of the CA-13 by Section 172 of the Finance Act, 2017, w.e.f. May 26, 2017.

3.16.4 Further, NCLAT is empowered to hear and dispose of appeals against the orders of the National Financial Reporting Authority, by virtue of the amendment brought to Section 410(a) of the CA-13 by Section 83 of the Companies (Amendment) Act, 2017, w.e.f. May 7, 2018.

3.16.5 The Central Government, vide Notification S.O. 1060(E) dated 13.03.2020, constituted another Bench of the NCLAT at Chennai to hear the appeals against the orders of the Benches of the NCLT having jurisdiction of Karnataka, Tamil Nadu, Kerala, Andhra Pradesh, Telangana, Lakshadweep, and Puducherry. Therefore, at present, the NCLAT has its Benches at two locations:

i. New Delhi Bench at New Delhi: 2nd & 3rd Floor of Mahanagar Doorsanchar Sadan (M.T.N.L. Building), 9, CGO Complex, Lodhi Road, New Delhi-110003 (Near Scope Complex).

ii. Chennai Bench at Chennai: 6th Floor, Ezhilagam Annex, Chepauk, Chennai- 600005.

3.16.6 The present status of cases before the NCLAT benches, as on November 30, 2024 is detailed in **Table 3.9** below:

Table 3.9
Number of cases as on November 30, 2024

Principal Bench at New Delhi

Sl. No.	Appeals filed under	Total appeals received up to 30.11.2024	Total appeals disposed of up to 30.11.2024	Appeals pending as on 30.11.2024
1.	IBC, 2016	10,247	8,372	1,875
2.	Companies Act, 2013	2,406	1,935	471
3.	Competition Act, 2002	448	291	157
4.	Compensation cases under Competition Act, 2002	12	03	09
5.	MRTP Cases	07	04	03
Total		**13,120**	**10,605**	**2,515**

Chennai Bench at Chennai

Sl. No.	Appeals filed under	Total appeals received up to 30.11.2024	Total appeals disposed of up to 30.11.2024	Appeals pending as on 30.11.2024
1.	IBC, 2016	1,866	1,305	561
2.	Companies Act, 2013	528	290	238
Total		**2,394**	**1,595**	**799**

Indian Accounting Standards

3.17.1 The Ministry introduced amendments in key accounting standards by notifying the Companies (Indian Accounting Standards) Amendment Rules, 2024 on August 12, 2024, the Companies (Indian Accounting Standards) Second Amendment Rules, 2024 on September 09, 2024 and the Companies (Indian Accounting Standards) Third Amendment Rules, 2024 on September 28, 2024 which came into effect from their date of publication in official gazette. Under these

Rules, amendments had been made to **Ind AS 104** and **Ind AS 117** related to *Insurance Contracts* and **Ind AS 116** related to **Leases**, along with other consequential amendments in Ind AS 1, Ind AS 7, Ind AS 19, Ind AS 32, Ind AS 36, Ind AS 37, Ind AS 38, Ind AS 101, Ind AS 103, Ind AS 105, Ind AS 107, Ind AS 109 and Ind AS 115.

CHAPTER-IV

THE LIMITED LIABILITY PARTNERSHIP (LLP) ACT, 2008

4.1.1 Micro, Small and Medium Enterprises (MSMEs) form the backbone of Indian economy since long back and, traditionally, the micro and small segments are dominated by proprietary and partnership concerns. But, the functioning of a proprietorship or a partnership firm is not transparent , making assessment of creditworthiness by bankers difficult and therefore the MSME sector is at a comparative disadvantage vis-à-vis corporate bodies in accessing loan/credit facilities from banks and other financial institutions.

4.1.2 In this backdrop, a need was felt for a new corporate form that would provide an alternative to the traditional partnership with unlimited personal liability. The statute-based governance structure of a Limited Liability Partnership (LLP) is an alternative that enables professional expertise and entrepreneurial initiative to combine, organise, and operate in a flexible, innovative, and efficient manner. Internationally, these are the preferred vehicles of business, particularly for the service industry or for activities involving professionals, especially in countries like the United Kingdom, the United States of America, Australia, Singapore, etc.

4.1.3 The Government has, therefore, permitted the LLP form of business organisations in India with a view to create a facilitating environment for entrepreneurs, service providers and professionals to meet the challenges of global competition. Parliament enacted the Limited Liability Partnership Act, 2008 (LLP Act, 2008), which was notified on January 9, 2009. It came into effect from March 31, 2009. The enabling Rules were notified on April 1, 2009 and the first LLP was registered on April 2, 2009.

4.1.4 An LLP is a form of business entity, which allows individual partners to be protected from the joint and several liabilities of partners in a partnership firm. The liability of partners incurred in the normal course of business does not extend to the personal assets of the partners. It is capable of entering into contracts and holding property in its own name. An LLP would be able to fulfil the compliance norms with much greater ease, coupled with limitation of liability. The corporate structure of LLP and the statutory disclosure requirements would enable a better access to credit in the market. The introduction of LLP form of business is expected to promote entrepreneurship, particularly in relation to the knowledge-based industries, such as the information technology and biotechnology sectors, and other service providers and professionals.

4.1.5 The functions of Registrar of LLP are being exercised by the RoC, with effect from June 11, 2012. Natural persons and body corporates, Indian or Foreign, can be partners in an LLP. At least two of them must be "Designated Partners", of which, at least one should be a resident of India. A body corporate can also be a designated partner, and in such a case, an individual authorized by the body corporate will function as the designated partner. The LLP can continue to have its existence irrespective of changes in partners.

4.1.6 An LLP is required to maintain Books of Account and Statement of Account and Solvency which are to be filed with the Registrar every year. An LLP can be wound up, either voluntarily, or by an order of NCLT.

4.1.7 In order to infuse a culture of transparency, the documents/information such as incorporation document, names of partners and changes, if any, made therein, Statement of Account and Solvency and annual return are open for inspection by any person on payment of a prescribed fee. The Central Government has powers to investigate the affairs of an LLP, if required, by appointing an Inspector.

4.1.8 A firm, private company or an unlisted public company, is allowed to be converted into an LLP in accordance with the provisions of the LLP Act, 2008. Provisions have also been made for corporate actions like mergers, amalgamations, etc.

4.1.9 In order to enhance and extend operational convenience to stakeholders and grouping of all registry-related functions on a single platform, e-governance initiative for LLP was integrated with MCA21 from June 11, 2012. With this integration, the filing and approval of LLP forms is being done through MCA21 portal, stakeholders are presently availing all existing facilities of MCA21 for LLP form filing, including online payments, or use of internet banking of designated banks, in addition to credit card payments.

4.1.10 An LLP serves as a business vehicle in the body corporate form, having a separate legal entity and a perpetual succession with liability of the partners limited to their agreed contributions.

4.1.11 The LLP Act, 2008 was amended through LLP (Amendment) Act, 2021 on August 13, 2021 to ease the regulations in the case of Limited Liability Partnerships, by decriminalization of 12 offences, prescription of standards of accounting and standards of auditing, establishment of Special Courts for speedy trial of offences, and introduction of new concepts such as "Small LLP" under the provisions of the LLP Act, 2008.

4.1.12 As part of the Government's constant efforts to promote EoDB, the Ministry has launched an amnesty scheme vide General Circular No. 08/2023 dated 23.08.2023 under which LLP Form-3 and LLP Form-4 are processed under Straight Through Process (STP) mode. Further, filing of Form-11 without additional fee was made applicable for FY 2021-22 onwards.

4.1.13 As on November 30, 2024, the number of LLPs registered in the country were 4,04,681 and of them, 3,64,071 LLPs were active. During the period from April 1, 2024 to November 30, 2024, 42,861 LLPs got registered and the number of active LLPs went up by 42,849.

4.1.14 Broad economic sector-wise classification of active LLPs as on November 30, 2024 reveals that the Services sector continues to account for maximum registration with 74.46% LLPs, followed by the Industry and Agricultural sectors accounting for 23.73% and 1.79%, respectively.

CHAPTER-V

THE COMPETITION ACT, 2002 AND RELATED ACTIVITIES

The Competition Act, 2002 and Establishment of the Competition Commission of India (CCI)

5.1.1 The Parliament enacted the Competition Act, 2002, with the following objectives:

i. to prevent practices having adverse effect on competition;

ii. to promote and sustain competition in markets;

iii. to protect the interests of consumers; and

iv. to ensure freedom of trade carried on by other participants in markets, in India, and for matters connected therewith or incidental thereto.

The Competition Act has four pillars, which reinforce one another and are as follows:

i. Prohibits anti-competitive agreements like cartels, which restrict freedom of trade and cause consumer harm by way of limiting production and distribution of goods and services and fixing prices higher than normal;

ii. Prohibits abusive behaviour of a dominant firm, who through its position of dominance may restrict markets and sets unfair and discriminatory conditions;

iii. Regulates combination(s) of large corporations in order to safeguard competitive markets; and

iv. Mandates competition advocacy.

5.1.2 CCI (hereinafter, also referred to as the Commission) was established in the year 2003 and got its enforcement and regulatory powers after the substantive provisions of the Act relating to anti-trust enforcement and regulation of combinations came into force on May 20, 2009, and June 1, 2011, respectively.

5.1.3 The Competition Act, 2002, provides for setting up of the CCI comprising Chairperson and a minimum of two and maximum of six Members. The Union Government in April, 2018 had decided that there would be three members in CCI. Thus, as per revised composition, the Commission consists of one Chairperson and three Members. The Act also provides for establishment of an Appellate Tribunal to hear and dispose of appeals against the orders of CCI and adjudicate upon the claims of compensation that may arise from the findings of the Commission. The work of Competition Appellate Tribunal (COMPAT), in pursuance of the amendment of the Competition Act, 2002 by the Finance Act, 2017, has been merged with NCLAT. As such, the former tribunal has ceased to exist and now all first appeals against the orders of the Commission lie before the NCLAT.

5.1.4 The present composition of the Commission consisting of a Chairperson and three members is annexed at **Annexure X**.

5.1.5 The Competition (Amendment) Act, 2023 was notified vide Official Gazette notification dated 11.04.2023, which broadens the scope of anti-competitive agreements.

Pursuant to these amendments, the Commission made the following regulations:

S.iNo.	Regulations	Date of Publication
1.	CCI (Lesser Penalty) Regulations, 2024	20.02.2024
2.	CCI (Commitment) Regulations, 2024	06.03.2024
3.	CCI (Settlement) Regulations, 2024	06.03.2024
4.	CCI (Determination of Turnover or Income) Guidelines, 2024	06.03.2024
5.	CCI Guidelines for Determination of Quantum of Monetary Penalty, 2024	06.03.2024
6.	CCI (Combination) Regulations, 2024	09.09.2024
7.	CCI (General) Regulations, 2024	17.09.2024

Currently, the Commission is in the process of finalising amendments to the Competition Commission of India (Manner of Recovery of Monetary Penalty) Regulations, 2011.

Cases dealt with by the Commission

5.2.1 The position with regard to cases dealt with by the CCI during the period from April 1, 2024 to November 30, 2024, are elaborated as under:

A. Enforcement Activities

5.2.2 During the period stated above, the Commission has received 26 cases under Section 19 of the Competition Act, 2002. During the said period, the Commission ordered an investigation by the Director General (DG) in 06 cases under Section 26(1) of the Act. The Commission closed the cases at a prima-facie stage in 24 cases. Further, 03 cases were disposed of under Section 27 and 01 cases in the other/miscellaneous categories after receipt of DG Report.

5.2.3 Cumulatively, between May 20, 2009, to November 30, 2024, 1,300 cases were registered under Section 19 of the Competition Act, 2002. The Commission has disposed of 1,163 cases. In addition, 03 cases were quashed by the Hon'ble Supreme Court and in 02 cases order for investigation has been set aside by the Hon'ble Delhi High Court. Furthermore, 516 cases were referred to DG for investigation including those cases in which orders under Section 26(1) have not been passed but have been clubbed with similar matters and directed by various courts. DG has submitted investigation report in respect of 484 cases. The investigation is underway in various other cases.

B. Combinations

5.2.4 The provisions relating to Regulations of Combinations (Mergers and Acquisitions) in the Competition Act, 2002 were notified by the Government of India on March 4, 2011, and became effective from June 1, 2011. For executing the mandate given under the Competition Act, the Commission notified "The Competition Commission of India (Procedure in regard to the transaction of business relating to combinations) Regulations, 2011" (hereinafter known as 'Combination Regulations') on May 11, 2011.

These regulations have been amended since then vide Notification(s) dated February 23, 2012; April 4, 2013; March 28, 2014; July 1, 2015; January 7, 2016; October 9, 2018; August 13, 2019; October 30, 2019; November 26, 2020, and March 31, 2022.

Subsequently, the Competition (Amendment) Act, 2023 (Amendment Act) was passed on April 11, 2023 which inter alia, significantly amended the regulatory framework relating to Mergers and Acquisitions (M&A) to make the regulatory regime more efficient and effective. The amendments introduced were comprehensive and encompassed the all-pervasive aspects of notification criteria and procedure for assessment of combinations, besides introducing new timelines for review. The salient features of the Amendment Act relating to Mergers and Acquisitions (M&A) included:

a. Introduction of deal value thresholds for Mergers and Acquisitions (M&A) where the value of the transaction exceeds INR 2000 crore and the target has substantial business operations in India;

b. Issue of statement of objections by the CCI, allowing the parties to propose modifications etc. to address any likely competition concerns;

c. Reduction in the overall timeline for assessment of combinations from 210 to 150 days and a time limit of 30 days for forming a prima facie opinion, failing which the transaction shall be deemed to have been approved;

d. Relaxation from the application of provisions relating to mandatory pre-transaction notification and approval in cases of implementation of an open offer or purchase of securities on a regulated stock exchange;

e. Incorporation of enabling clause for deemed approval on filing in certain cases; and

f. Incorporation of an enabling clause for exempting certain categories of transactions from notification to the CCI.

On September 9, 2024, the Ministry of Corporate Affairs (MCA) notified amendments to the Competition Act, 2002 in respect of the regulatory framework for Combinations, including those on deal-value thresholds, and introduced the following rules which have taken effect from September 10, 2024:

a. Competition (Criteria for Exemption of Combinations) Rules, 2024 (Criteria for Exemption of Combinations Rules);

b. Competition (Criteria of Combination) Rules, 2024 (Criteria of Combination Rules); and

c. Competition (Minimum Value of Assets or Turnover) Rules, 2024 (Minimum Value of Assets or Turnover Rules)

Consequent upon the significant changes introduced by the Amendment Act relating to the regulation of combinations, the CCI has repealed the existing Combination

Regulations and introduced a revised set of comprehensive Combinations Regulations (Combinations Regulations 2024), which also came into effect from September 10, 2024.

5.2.5 During the period April 1, 2024, to November 30, 2024, the Commission received 85 Combination notices [Form- I & II filings]. This includes 11 Notices through Green Channel, which is around 13% of total combination notices filed during the period. During the period, the Commission disposed of 87 notices including carry forward notices.

5.2.6 Cumulatively, between June 1, 2011, and November 30, 2024, total 1,212 combination notices have been filed under Sections 5 & 6 of the Competition Act. Out of these, 1,195 notices have been disposed of by the Commission.

5.2.7 During the period, the Commission reviewed combinations which impacted the consumers as well as the economy in sectors such as Finance, Power and Power Generation, Auto and Auto Components, Information Technology and Services, Pharmaceuticals and Healthcare, Media and Entertainment, Oil, Retail and Aviation, etc.

Important Initiatives taken by the Commission during the year

5.3.1 Study on Emerging Competition Landscape in Renewable Energy Sector in BRICS Nations: Under the aegis of BRICS Competition MoU, CCI initiated a study on the renewable energy sector to understand how renewable energy markets are evolving in the BRICS economies and to explore and analyse the potential competition policy issues or challenges in the sector.

5.3.2 Participation in International Events: Engagements with various Competition Authorities/ International Bodies.

i. Chairperson, CCI attended and addressed the Annual Enforcers Summit organized by USFTC & DOJ on April 8, 2024 in Washington, D.C. Chairperson also attended and addressed the ABA Spring Meeting 2024 from April 9–11, 2024 in Washington, D.C.

ii. Chairperson, CCI attended and addressed the 23rd International Competition Network Annual Conference from May 14-17, 2024 in Sauipe, Brazil.

iii. Chairperson, CCI delivered the Keynote Address at the International Bar Association's Annual Competition Conference from September 6-7, 2024 in Florence, Italy.

iv. Member (AA), CCI virtually participated in the Meeting of Heads of National Antimonopoly Agencies of the Shanghai Cooperation Organization (SCO) Member States oneMay 30, 2024.

v. CCI Officer participated in the 8th Round of India-EU Free Trade Agreement (FTA) Negotiation of 'Anti-Competitive Conduct, Merger Control and Subsidy' Chapter from June 26-27, 2024 in Brussels, Belgium.

vi. A Parliamentary Delegation led by Chairperson of the Commerce Committee of Parliament of Finland interacted with Chairperson, Members and Officers of CCI at CCI, New Delhi on September 10, 2024.

vii. CCI, as Co-chair of the Working Group on ICN Operational Framework, along with Competition Bureau Canada, steered virtual meetings of Working Group members on review and necessary modifications of the ICN Operational Framework.

Advocacy Activities

5.4.1 It is a well-settled principle that enforcement and advocacy are twin arms of the competition law having supplemental and complemental role towards building competition compliant culture in the country. Section 49(3) of the Competition Act, 2002 mandates the Commission to take suitable measures for promotion of competition advocacy or culture, creating awareness and imparting training about competition issues. The Commission in pursuance of the advocacy mandate engages with stakeholders such as Judiciary, Central and State Governments, Industry, Academia, Central and State Public Sector Undertakings (PSUs), Professional Bodies, Trade Associations, Administrative and Judicial Training Academies, etc.

5.4.2 Keeping in view the diverse linguistic population and to enhance awareness in various regions/states of the country, competition advocacy booklets are published in English, Hindi and various regional languages. Apart from this, CCI regularly publishes its quarterly Newsletter 'Fair Play'.

5.4.3 The CCI published the Competition Commission of India Journal on Competition Law & Policy (Vol. 4 No. 2) (December, 2023 Issue) in April 2024. The CCI journal is conceived with the aim of fostering research in the field of competition law and policy.

5.4.4 The CCI also published a Market Study Report on the Diagnostic Medical Imaging (DMI) equipment industry in India (Focussed on MRI and CT Scan) in August 2024 to understand the competition trends in the sector.

5.4.5 The Commission conducts a monthly internship programme for students of law, economics, management, regulatory governance, and professional courses wherein the interns conduct research on the relevant issues of competition law, under the mentorship of officers of the Commission.

5.4.6 State Governments are an important stakeholder in the competition ecosystem. In order to take competition advocacy forward at the state level, CCI introduced the State Resource Person Scheme (SRP Scheme). Under this scheme, state governments/UTs nominates one/two retired officers from State government as SRP. The SRPs disseminate awareness on competition law by imparting training and organizing programmes in their respective states for the officers of various State Departments/ PSU's. A total of 150 SRP programmes were conducted during this period.

To reach out to a wide spectrum of stakeholders of competition law in an effective manner, CCI conducted 17 competition advocacy programmes specific to the needs of the stakeholders.

Capacity Building Initiatives

5.5.1 During the period of report, three workshops on "Team Building & Leadership", "Competition Economics for Lawyers" and "Preventive Vigilance" for the Officers and Young Professionals of CCI were organised.

5.5.2 From April 2024 to November 2024, a total of 184 CCI officers attended trainings/eworkshops on relevant subjects/topics organized by specialized training institutions and professional bodies within India.

5.5.3 CCI organised an orientation session for 3 IAS officers (batch 2022) on June 5, 2024, as part of their attachment as Assistant Secretaries in the Ministry of Corporate Affairs for the period of May 20, 2024 to July 12, 2024.

Presence on Social Media

5.6.1 In the Commission's continuous endeavour to reach out to wide spectrum of stakeholders, social media channels are being utilised. The Commission now has presence on five important social media platforms i.e., X (formerly Twitter), YouTube, LinkedIn, Facebook and Instagram. CCI's handles on these social media platforms are verified. The posts regarding Commission's recent orders, advocacy programmes, informative posts and other activities of the Commission are being uploaded on regular basis.

CHAPTER-VI

THE INSOLVENCY AND BANKRUPTCY CODE, 2016

Overview

6.1.1 Economic growth is associated with expanding credit as the demand for financial services increases. Bank credit finances capital formation and increases production and consumption in the economy further stimulating the economic growth. However, as an economy expands and so does the bank credit, the problem of Non-Performing Assets (NPAs) is also seen to emerge. Corporate Insolvencies and Liquidations are a common feature of liberal market economies. When certain corporates fail, they are either acquired/merged /amalgamated by competitors or liquidated and their assets are sold to recover creditors' dues. Corporate failures also mean rising NPAs of the banking sector. Banks have to deal with borrowers who are unable to service their debts and therefore, have to employ procedures to take over and realise the collateral. Addressing NPAs is the key to preserving financial stability and is an important element of an integrated development agenda of a nation.

6.1.2 A sound legal and regulatory framework for resolution of financially distressed companies and a strong secondary market for distressed assets are the key to deal with NPAs successfully. The Government and the RBI have been working together to comprehensively address the challenge through a multi-pronged approach aimed at strengthening the legal, regulatory, supervisory and institutional framework with the ultimate objective of facilitating quick resolution of stressed assets in a time-bound manner.

Erstwhile framework in India

6.2.1 Several attempts were made in the past to provide a legal and institutional machinery for dealing with debt defaults. However, these attempts had not kept pace with the changes in the Indian economy. While provisions for recovery action by creditors were available under the Indian Contract Act, 1872, special laws such as the Recovery of Debts and Bankruptcy Act, 1993 (RDBA) and the Securitisation and Reconstruction of Financial Assets and Enforcement of Securities Interest Act, 2002 (SARFAESI), did not yield desired outcomes. Further, action through the Sick Industrial Companies (Special Provisions) Act, 1985 (SICA) and the winding-up provisions under the Companies Act, 1956 (CA-56) were not proving to be very helpful for either recovery by lenders or restructuring of firms. The laws dealing with individual insolvency, namely, the Presidency-Towns Insolvency Act, 1909 and the Provincial Insolvency Act, 1920, were also not suitable for the changing needs of the time. This hampered confidence of lenders and, consequently, the debt market. While secured credit from banks was predominant form of credit, the corporate debt market was yet to develop.

'Twin Balance Sheet' problem

6.3.1 In the backdrop of above, the stressed assets in the banking system reached unacceptably high levels by the end of 2015.

By September 2016, it reached about 9 per cent of gross loans of all banks and 12 per cent of gross loans of public sector banks, which accounted for more than 80 per cent of total NPAs. On the corporate side, major companies were operating with an interest coverage ratio of less than 1, implying the inability to service debt obligations. Thus, what emerged is popularly referred to as the 'Twin Balance Sheet' problem where the banks were reeling under the stress of bad loans and corporates were unable to service their debt.

6.3.2 With time, it was deemed necessary to make the resolution of unviable entities effective, easily accessible and provide for ease of exit for firms. The need for a comprehensive legislation arose eventually, which led to the enactment of the Insolvency and Bankruptcy Code, 2016 (IBC/Code).

Bankruptcy Law Reforms Committee

6.4.1 A Bankruptcy Law Reforms Committee (BLRC) was constituted to study the legal framework for corporate bankruptcy in India and based on its recommendations with slight modifications as suggested by Joint Parliamentary Committee in its April 2016 Report, the Code came into being on May 28, 2016.

Applicability and Ecosystem of the Code

6.5.1 The Code provides a legislative framework for the insolvency resolution of (i)Companies under the CA-13, limited liability partnerships under the Limited Liability Partnership Act, 2008 or any other person incorporated with limited liability under any law (excluding financial service providers); and (ii)individuals, including personal guarantors to corporate debtors, partnership firms and proprietorship firms and other individuals. The provisions relating to Insolvency Resolution and Liquidation of Corporates and insolvency resolution and bankruptcies of personal guarantors to corporate debtors have been notified till date.

6.5.2 Further, the framework for insolvency and liquidation of Financial Service Providers (FSPs) other than Banks have been notified with effect from November 15, 2019.

6.5.3 The Code has created a cohesive and comprehensive ecosystem since its enactment in 2016, which cements the processes and the service providers together towards the achievement of its objectives in a time bound manner. The four pillars of the Code are as follows:

i. The Insolvency Professionals (IPs), who are the regulated and licensed professional, responsible for managing and overseeing the efficient working of the insolvency, liquidation and bankruptcy processes.

ii. The Information Utilities (IUs), are regulated and licensed repositories of information who store facts about lenders and terms of lending in electronic database and eliminate delays and disputes about facts when default does take place.

iii. Adjudicating Authority (AA), namely, NCLT acts as the forum where corporate insolvency is heard and Debt Recovery Tribunal (DRT) where individual insolvencies are heard.

iv. The fourth pillar is the regulator, the Insolvency and Bankruptcy Board of India (IBBI) which has regulatory oversight over the IPs, IPAs, IPEs and IUs and has the responsibility for specifying the regulations for various processes under the Code.

6.5.4 The **Table 6.1** below lists the complete ecosystem available under the Code:

Table 6.1: Ecosystem under the Code as on September 30, 2024

Appellate Authority	Two Benches of National Company Law Appellate Tribunal
Adjudicating Authority	16 Benches of National Company Law Tribunal (including one Principal Bench at New Delhi)
Regulator	Insolvency and Bankruptcy Board of India
Service Providers: As on September 30, 2024	
Information Utilities	01
Insolvency Professional Agencies	03
Insolvency Professionals (Individuals)	4,425
Insolvency Professional Entities (IPEs as IP)	83
Insolvency Professional Entities	123
Registered Valuer Organisations	15
Registered Valuers	5,667
Registered Valuer Entities	113

Role of Insolvency and Bankruptcy Board of India (IBBI)

6.6.1 IBBI, established on October 1, 2016, in accordance with the Code, is a body corporate having perpetual succession. It is a key pillar of the ecosystem responsible for implementation of the Code. It is a unique regulator; regulates service providers as well as processes under the code. It has regulatory oversight over IPs, IPAs, IPEs, IUs, RVs, RVEs and RVOs. It lays down regulations to govern processes, namely, Corporate Insolvency Resolution Process, Corporate Liquidation, Individual Insolvency, and Individual Bankruptcy under the Code and enforces the Code, rules and regulations made thereunder. The current composition of IBBI is annexed at **Annexure -XI**.

Amendments made to Insolvency and Bankruptcy Code, 2016

6.7.1 The Government has constituted an Insolvency Law Committee (now, functioning as a Standing Committee), which has been constantly examining the challenges arising during the implementation of the Code and making recommendations for its smooth implementation towards realizing its objectives. Based on the recommendations of the Committee and examination within the Ministry, and requirements of the emerging market realities, and emerging jurisprudence, six sets of amendments have been carried out in the Code till date.

6.7.2 Important amendments made in the Code include providing norms for ineligibility to submit a resolution plan; exempting applicability of certain provisions for submission of resolution plan in respect of MSMEs as corporate debtors; clarifying the status of homebuyers; introducing majority rule for the class of creditors; protecting last mile funding; ensuring the supply of goods or services which are critical to protect and preserve the value of the corporate debtor and manage its operations as a going concern; mandating the minimum number of persons required to file an application in certain cases; providing immunity in respect of offenses committed by the corporate debtor on approval of the resolution plan; providing a suspension of filing of applications under Sections 7, 9 and 10 of the Code in respect of default committed during the period of suspension; and introducing Pre-Packaged Insolvency Resolution Process (PPIRP) framework for MSME corporate debtors.

Evolution of IBC, 2016

6.8.1 The journey of consolidation of the IBC along with its amendments and relevant rules is at **Annexure- VII** and **Annexure-VIII** respectively.

Regulations made under the IBC, 2016

6.9.1 There are total 18 regulations in place, out of which 13 regulations are directly related to the operation of provisions under IBC, 2016 and 5 regulations relate to the internal functioning of the IBBI, which is at **Annexure-IX**.

IBC since Inception

6.10.1 Since the enactment of the Code in 2016, a total of 8,002 corporate insolvency resolution processes (CIRPs) have commenced till September 30, 2024. Of these, 1,221 have been closed on appeal or review or settled; 1,120 have been withdrawn under Section 12A; 2,630 have ended in liquidation, 1,068 have ended in approval of resolution plans and for remaining the process is ongoing.

6.10.2 A total of 1,068 CIRPs have ended in resolution till September 30, 2024. About 40% of the CIRPs which yielded resolution plans were earlier with BIFR and/or defunct. The creditors have realised Rs. 3.55 lakh crore under the resolution plans which is more than 31% as against the admitted claims and around 161% as against the liquidation value. Resolution plans on average are yielding around 86% of fair value of the corporate debtors.

6.10.3 Till September 2024, 2,630 CIRPs ended in liquidation. More than 78% of the CIRPs ending in liquidation were earlier with BIFR and/or defunct. The economic value in most of these CDs had almost completely eroded even before they were admitted into CIRPs.

6.10.4 Till November 2024, 30,153 applications for initiation of CIRPs of CDs having underlying default of Rs. 11.44 lakh crore were withdrawn before their admission. It indicates that debtors are resolving distress in early stages of distress. They are resolving when default is imminent, on receipt of a notice for repayment but before filing an application, after filing the application but before its admission, and even after admission of the application, and making best effort to avoid consequences of resolution process.

6.10.5 The Code read with relevant Regulations requires the RPs and Liquidators to file applications for avoidance of transactions, with the AA, seeking appropriate directions. 1,326 applications seeking avoidance of transactions, involving a total of around Rs. 3.76 lakh crore have been filed with the AA till September 30, 2024.

6.10.6 At the end of September 2024, 2,043 corporate persons initiated voluntary liquidation, of which final reports have been submitted in 1,533 cases. Further, orders for dissolution in respect of 1,099 voluntary liquidations have been passed till September, 2024

CHAPTER-VII

TOWARDS INTERACTIVE AND RESPONSIVE ADMINISTRATION

MCA21 e-Governance Project

7.1.1 MCA has been operating the end-to-end e-Governance project MCA21 for registry and company incorporation related services. The project is implemented in the offices of Registrar of Companies (RoCs), Regional Directors (RDs), MCA Headquarters (HQ) and Official Liquidators (OLs).

7.1.2 The MCA21 System provides the stakeholders convenient, easy to use and secured access and delivery of all MCA services with improved speed and certainty. It brought about transparency, quickness, and efficiency in the functioning of the Ministry.

7.1.3 Realizing the need for providing excellent services to stakeholders, the Ministry has been continuously making efforts to introduce best practices in the online delivery of services. Sustained efforts have resulted in recognition of MCA21 as a successful Mission Mode Project of National e-Governance Plan (NeGP). The portal is regarded as a live model for transformation of traditional paper-based systems into a paperless system using the latest information technology. Consequently, hardware and application up-gradation with updated technology has already been completed at all offices of RoCs, RDs and at HQ.

Significant Updates

7.2.1 MCA21 Version 3.0

MCA21 portal was launched in 2006 with the aim to digitize corporate filings and to improve compliance. Since then, several changes have taken place to improve the Ease of Doing Business (EoDB) and for strengthening Corporate Governance. The 2nd iteration of MCA21 Portal started from the year 2013 and continued till 2020. MCA21 Version 3.0 is now being launched in phases.

MCA21 V3 Project is a technology-driven forward-looking project, envisioned to strengthen enforcement, promote EoDB, enhance user experience, facilitate seamless integration and data exchange among Regulators. Aligned with the global best practices and aided by emerging technologies such as Artificial Intelligence and Machine Learning (AI/ML), MCA21 V3 is envisioned to transform the corporate regulatory environment in India.

MCA21 V3 was launched on May 24, 2021 with the revamped website, eBook and e-Consultation Module. The new website incorporates the latest UI/UX developments to enhance the user navigation and information accessibility. The eBook Module covers all Acts administered by the MCA in an easy to navigate manner. The sections of the Acts are linked with rules and circulars to seamlessly provide the required information on the same page. The e-Consultation

Module envisages leveraging technology to enhance policymaking. The user feedback analysed through the use of AI/ML techniques would help in deriving meaningful inference that can guide the decision-making.

LLP Module was launched on March 8, 2022 to cater to compliances related to LLP Act, 2008. This module was rolled out with significant changes in the filing system for MCA21 portal. A new and improved login system was launched for filing of forms. All the forms were made web-based that allowed real time data validation and prefills. Changes were also done to reduce the number of forms. LLP Form 28 & 29 were merged as one form i.e. LLP Form 28. LLP Forms 3, 4, and 5 can be filed either as linked form or as standalone. Form for Incorporation of Limited Liability Partnership (FiLLiP) for incorporation of LLPs is now linked with LLP Form 9, 17 & 18. PAN/TAN has been integrated with FiLLiP. The MCA21 Version 3.0 services have been integrated with BharatKosh payment system to allow seamless payment experience for stakeholders.

Central Scrutiny Centre (CSC) was launched on March 24, 2021. CSC scrutinizes the Straight Through Process (STP) forms to check for any deficiencies. Further, the defective forms are moved to the jurisdictional RoCs for marking them as 'defective'. This will improve the accuracy of the data filed with MCA and will act as a checkpoint for improper filing by the Corporates.

The 1st lot of Company Module [Charge Forms, Deposit Forms and DIR-3 KYC Forms] was rolled out to all users on September 1, 2022. The 2nd set of Company eForms (consisting of 56 forms) were rolled out to all users on January 23, 2023. E-adjudication module was launched on September 16, 2024. Remaining company forms and other modules are currently under advanced development and testing phase and are planned to be fully deployed within this year.

Centre for Processing Accelerated Corporate Exit (C-PACE) has been launched to facilitate and speed up voluntary winding-up of these companies from the currently required 2 years to less than 6 months. C-PACE has been operationalized and stationed in IICA, Manesar w.e.f May 1, 2023.

A Central Processing Centre (CPC) has been established from February 16, 2024 to process forms filed as part of various regulatory requirements under CA-13 and LLP Act in a centralised manner, requiring no physical interaction with the stakeholders. As on date, 12 forms/applications are being processed at CPC.

7.2.2 The new eForms launched under MCA21 Version 3.0 have a number of technical and functional enhancement to improve the overall filing experience. The changes undertaken in eForms on the new V3 portal are as under:

i. All eForms filings under MCA21 Version 3.0 are web based allowing for real time validation and prefiling of information.

ii. Wherever possible, requirement of attachment has been done away with and if required, the information is either captured in machine readable format or through declaration in the eForm.

iii. Auto Pre-filling of common fields across forms, ensuring data consistency and effort reduction have been introduced.

iv. Maximum size of individual attachments increased to 2 MB and overall form size increased to 10 MB from 6 MB.

v. NIC Code 2008 has been introduced to capture industrial classification for newly incorporated entities. Earlier, NIC 2004 classification was used in the MCA21 Version 2.

vi. Additionally, User Registration and Login have been made robust. Email ID and Mobile One Time Password (OTP) validation has been introduced. Only Business users are allowed to file eForms in MCA21 Version 3.0 ensuring identity and transparency from filers.

Operational Statistics

7.3.1 The operational statistics of MCA21 highlight the performance and stability of the system, increased volume of filings, leading to greater service delivery and improved compliance, as given below in **Table 7.1**:

Table 7.1
Filing Status from 01.04.2024 to 30.11.2024

Sl.iNo.	Description	01.04.2024 to 30.11.2024
(1)	(2)	(3)
1.	Total filings through system	76,57,941
2.	Maximum No. of documents filed on a day	1,66,863 (October 29, 2024)
3.	No. of companies registered online	1,12,965
4.	Total DIN issued	2,84,888
5.	Company records viewed online	30,81,634
6.	No. of balance sheets filed	11,07,269
7.	No. of annual returns filed	10,04,087
8.	Total e-stamp fee collected (₹ in crore)	251.61
9.	No. of Nodal officers registered with Digital Signature Certificate (DSC)	507
10.	No. of authorized bankers and professionals registered with DSC	16,88,470
11.	No. of registered users on the portal	43,30,127

Efficiency in Service Delivery under MCA21

7.3.2 The implementation of the MCA21 project has significantly enhanced the efficiency and turnaround time for delivering key services. Before MCA21, processes such as name approval and company incorporations took 7 days and 15 days, respectively. However, post-MCA21 and the establishment of the CRC, these timelines have been reduced to 1-3 days and 1-2 days, showcasing remarkable improvement. Similarly, for the filing of BS/AR, which earlier took up to 60 days, can now be processed instantaneously. Changes in directors that used to require 60 days are now completed within a single day. Moreover, the inspection of public documents, which previously necessitated a physical visit to the ROC, is now seamlessly conducted online. These advancements underscore the transformative impact of the MCA21 project in streamlining service delivery and enhancing user convenience.

7.3.3 The registration of other documents has been given below in **Table 7.2**:

Table 7.2
Registration of Other Documents

Type of Service	Prior to MCA21	After MCA21
(1)	(2)	(3)
Annual Return	60 days	Instantaneous
Balance Sheet	60 days	Instantaneous
Change in Directors	60 days	Instantaneous
Change in Regd. Office Address	60 days	As per law
Increase in Authorized Capital	60 days	Instantaneous
Inspection of Public Documents	Physical appearance	Online

Corporate Data Management (CDM)

7.4.1 CDM is a Central Sector Scheme initiated by the Ministry in the financial year 2015-16. It envisages to create an in-house data mining and analytics facility with the objective of disseminating corporate sector data in a structured manner. It provides a forward linkage to MCA21 data repository by fetching data in a transactional system into a data warehouse system. The objectives of CDM include: a)disseminating sharable information, in unit-level format and tabular forms; b)sharing of customized information for policy making and regulatory processes of MCA as well as other government departments, regulatory bodies and enforcement agencies; and c)enhancing and institutionalizing Ministry's in-house capabilities for corporate data mining and Information Management to support decision making.

7.4.2 This project is contemplated to generate various statistical reports using time series data, cross-section data, panel data, etc. on Indian Corporate Sector Performance. In addition, this project has been expanded to facilitate monitoring of compliance and regulation by the Ministry. CDM has emerged as a Business Intelligence and Decision Aiding platform for MCA.

7.4.3 The annual statutory filings (in electronic mode) of companies since the year 2006-07 have been updated in the CDM Data Warehouse.

Investor Education and Protection Fund Authority (IEPFA)

7.5.1 The details of Investor Awareness Programmes (IAPs) conducted during the years 2020-21 to 2024-25 are as under:

Table 7.3
Details of IAPs conducted during the years 2020-21 to 2024-25*
(As on 30.11.2024)

Financial Year	By Professional Institutes	By CSC e-Governance	Total
(1)	(2)	(3)	(4)
2020-21	997	4,034	5,031
2021e22	2,485	10,966	13,451
2022-23	4,927	-	4,927
2023e24	1,208	13,280	14,488
2024-25*	1,299	19,740	21,039
Total	**10,916**	**48,020**	**58,936**

*More than 1,06,039 IAPs have been conducted since its inception

Investor Awareness Initiatives

7.5.2 IEPFA's Investor Awareness Programs (IAPs) was launched in February 2023 conducted through the Niveshak Saarthi Vans, which significantly enhanced financial literacy across India by making it more accessible. In partnership with CSC e-Governance Services India Limited, IEPFA organised interactive workshops and personalized sessions for various age groups and professions. The initiative's core goal is inclusivity, ensuring that financial education is available to everyone, regardless of their location or social background.

7.5.3 IEPFA in collaboration with ICAI hosted an important Investor Awareness Programme (IAP) in July 2024, at IPEX Bhawan, Patparganj, Delhi. The goal of the program was to provide essential financial knowledge, especially to educated individuals who lack financial literacy. The session covered important topics like investment strategies, financial planning, and how to avoid fraud.

7.5.4 IEPFA is deeply committed to resolving grievances efficiently, as demonstrated by the growing attendance at its Niveshak Panchayat meetings held every Monday. These meetings have become a crucial platform for investors to raise concerns and seek assistance, fostering transparency and trust within the community. To further enhance accessibility and engagement with stakeholders, IEPFA successfully conducted the Niveshak Sunwai events in Mumbai and Ahmedabad.

7.5.5 IEPFA has significantly enhanced its IVRS and Call Center infrastructure by launching a new five-digit toll-free number, "14453", replacing the previous number, 1800 114 667. This upgrade introduces advanced multilingual capabilities, ensuring claimants an effortless and efficient experience when seeking assistance.

7.5.6 IEPFA organised a seminar on its 8th Foundation Day titled "Advancing Investor Empowerment through Financial Education and Fraud Prevention". During the event, a collection of handbooks designed specifically for school students, college students, homemakers, retirees, and self-help groups was launched, highlighting IEPFA's tailored approach to financial literacy.

7.5.7 IEPFA in partnership with the National Council of Applied Economic Research (NCAER), organized the "Niveshak Mashal" Half Marathon on September 8, 2024, in Anupshahr, Uttar Pradesh. The event aimed to raise awareness about financial literacy and investor protection, with over 4,500 participants, including students from more than 45 schools and local community members.

7.5.8 IEPFA organised seminar with BSE and NCAER on the theme "Digitalization of Financial Education: A Modern Approach for Investor Protection and Capital Market Development," on November 11, 2024, at the BSE International Convention Hall in Mumbai. The seminar emphasised how digital platforms can reduce risks and support market stability.

Indian Institute of Corporate Affairs (IICA)

7.6.1 IICA runs a two-year regular full time programme for Insolvency Professionals, called the Post Graduates Insolvency Programme (PGIP), which is the first of its kind programme for those aspiring to take up the discipline of Insolvency professional as a career. IICA has also instituted a national databank for Independent Directors with the support of the Ministry. The Independent Directors' databank, a national repository, is an innovative e-governance initiative that supports the entire registration process, capacity building through e-learning modules, and continuous professional development. It includes a unique self-assessment tool to measure proficiency levels, exemplifying the Digital India Campaign by providing comprehensive services and knowledge dissemination to all the members through a robust online platform. Apart from these, IICA has also conducted various other long/short term course/training programmes/workshops/ events on various subjects relating to Finance, Corporate Governance, ESG, CSR etc. Advisory services are also given to PSEs/Government Organizations/MNCs on need basis.

7.6.2 Shri Harsh Malhotra , Union Minister of State for Corporate Affairs and Road Transport and Highways, and Justice (Retd.) Shri Dipak Misra, 45th Chief Justice of India inaugurated the flagship "National Conference on Responsible Business Conduct 2024- Escalating Environmental, Social, and Governance (ESG) for Viksit Bharat" organized by IICA in New Delhi during September 4-5, 2024.

7.6.3 IICA in collaboration with NALSAR University of Law, Hyderabad, hosted the Orientation for the second batch of their LL.M in Insolvency and Bankruptcy Laws program in the month of July, 2024. The LL.M program is a two-year, full-time residential course split between the IICA and NALSAR campuses.

7.6.4 Key activities carried out by IICA include capacity building and training programs, policy advisory functions, public outreach, and stakeholder consultations through seminars, conferences, and forums during April 1, 2024 to November 30, 2024 are given below:

Long-term Courses:

i. IICA-NFRA Director's Certification Program for Audit Committee Members (4 Months Online).

ii. Start-up Board Certification Program (4eMonths Online).

iii. Certificate Program in Corporate Governance.

iv. IICA Valuation Certificate Program (1 Year hybrid).

v. Post-Graduate Insolvency Program (2 Years In-person).

vi. IICA Certified ESG Professional-Impact Leader Programme (6 Months Online).

vii. IICA Certified CSR Professional Program (9 Months Online).

viii. IICA Certified Business & Human Rights Professional Program (3 Months).

ix. LLM in Insolvency and Bankruptcy Laws (2 Years Residential Programme).

x. Certificate Course in Corporate Laws (6 months online).

xi. Certificate Course in Business and Financial laws (9 months online).

xii. Certificate course in Insolvency & Bankruptcy Laws and Procedures (3 months online).

xiii. Advanced professional course in competition law and market regulation (6 months online).

xiv. IICA Certified Mediator Program (3 Months online).

xv. IICA Regulatory Governance Program (1 Year Hybrid).

xvi. Certificate Course on Arbitration (6 Month online).

xvii. Masters in Financial and Economic Crimes Program (1 Year hybrid).

Short-term Courses:

i. 2 Days Certification Program for Effectiveness of Audit Committee.

ii. 2 Days familiarization program for Independent Directors.

iii. 3 Days Director's Certification Program in ESG Leadership.

iv. 2 Days Effective Risk Governance & Boards.

v. 3 Days Master-class on Building Better Boards.

vi. Short-term Company Focused Program on Corporate Governance& Leadership.

vii. 3 Days Financial Intelligence for Directors program.

viii. 4 Days Capacity Building Program on "Advance Procurement (Policy & Procedures based on GFR, GeM& E-Procurement), Strategic Sourcing, Cost Reduction Techniques & Contract Management".

ix. 3 Days Capacity Building Program on "Navigating Procurement via Government e Marketplace (GeM), Strategic Contracts in Procurement - Drafting, Negotiation, Enforcement & Dispute Resolution".

x. 3 Days Capacity Building Program on "Strengthening Enterprise Governance, Regulatory compliance and Risk Management for Profitable & Sustainable Business Growth".

xi. 3 Days Certification Program on ESG for Board Members.

xii. 3 Days Capacity Building Program on "Accelerate SMEs Advancement Program for Revitalizing MSMEs - New Approaches & Strategies to enhance SMEs Growth & Competitiveness".

xiii. 3 Days Capacity Building Program on "Strategic B2B Supply Chain Management (SCM) for Competitive Advantage".

xiv. 5 Days Capacity Building Program on "Corporate Affairs" in collaboration with RRU.

Corporate Social Responsibility (CSR)

7.7.1 The legal framework for Corporate Social Responsibility (CSR) is established under Section 135 of the Companies Act, 2013 ('Act'), along with Schedule VII of the Act and Companies (CSR Policy) Rules, 2014. Schedule VII of the Act indicates the eligible list of activities that can be undertaken by the companies under CSR. The items enlisted in the Schedule VII of the Act are broad-based and intended to cover a wide range of activities.

7.7.2 Summary Details of CSR Expenditure: The details of the cumulative amount spent as per filings made by companies up to March 31, 2024 in the MCA21 registry for the financial years 2014-15 to 2022-23 is provided in **Table 7.4.** Whereas States/UTs-wise and development sector-wise CSR expenditure by companies is in **Table 7.5** and **Table 7.6** respectively.

Table 7.4
CSR Expenditure for FY 2019-20 to 2022-23#

(in ₹ Cr.)

PSU/ Non - PSU	2019 -20		2020 -21		2021 -22		2022 -23		Cumulative Amount from 2014-15 to 2022-23
	Total Cos.	Amount Spent	Total Cos.	Amount Spent	Total Cos.	Amount Spent	Total Cos.	Amount Spent	
Non - PSU	22,502	19,655.70	20,392	21,724.68	19,526	22,246.10	24,021	25,892.14	1,47,609.37
PSU	483	5,310.12	448	4,486.27	361	4,370.20	371	4,095.78	36,613.50
Grand Total	**22,985**	**24,965.82**	**20,840**	**26,210.95**	**19,887**	**26,616.30**	**24,392**	**29,987.92**	**1,84,222.87**

# Data up to March 31, 2024 which is a cut off date of CSR filings for FY 2022-23.
[Source: Corporate Data Management Cell]

Table 7.5
State/UT-wise CSR expenditure#

(in ₹ Cr.)

Sl. No.	State/UT	Amount Spent FY 2019 -20	Amount Spent FY 2020 -21	Amount Spent FY 2021 -22	Amount Spent FY 2022 -23	Cumulative amount from 2014 -15 to 2022 -23
1.	Andaman & Nicobar	1.29	2.86	9.71	2.53	19.40
2.	Andhra Pradesh	710.23	719.81	656.79	954.63	6,718.77
3.	Arunachal Pradesh	18.02	10.58	119.42	13.35	234.42
4.	Assam	285.00	180.23	406.17	470.24	2,313.92
5.	Bihar	110.48	89.89	165.97	235.36	1,107.15
6.	Chandigarh	15.58	13.40	50.88	18.06	158.96
7.	Chhattisgarh	269.68	325.63	305.29	596.11	2,308.64
8.	Dadra & Nagar Haveli	18.34	21.98	14.11	13.71	112.41
9.	Daman & Diu	9.53	5.25	4.13	9.40	79.87
10.	Delhi	830.00	724.59	1,193.93	1,462.66	6,694.70
11.	Goa	43.91	41.92	45.43	58.11	381.42
12.	Gujarat	984.37	1,461.60	1,603.93	1,982.26	9,809.48
13.	Haryana	537.91	550.86	683.95	700.16	4,161.91

(in ₹ Cr.)

Sl. No.	State/UT	Amount Spent FY 2019 -20	Amount Spent FY 2020 -21	Amount Spent FY 2021 -22	Amount Spent FY 2022 -23	Cumulative amount from 2014 -15 to 2022 -23
14.	Himachal Pradesh	78.78	106.31	140.22	138.52	698.32
15.	Jammui& Kashmir	25.27	35.56	50.68	71.22	459.19
16.	Jharkhand	155.21	226.54	193.33	388.13	1,498.46
17.	Karnataka	1,448.16	1,277.81	1,839.73	1,985.23	11,006.31
18.	Kerala	298.56	290.67	239.73	351.60	2,102.17
19.	Lakshadweep	-	0.01	0.45	0.02	3.44
20.	Lehi&iLadakh	-	-	14.84	11.72	26.55
21.	Madhya Pradesh	220.46	375.51	427.10	655.86	2,561.21
22.	Maharashtra	3,353.24	3,464.81	5,380.07	5,494.77	29,531.31
23.	Manipur	14.21	10.39	15.62	53.45	127.58
24.	Meghalaya	17.65	17.63	19.63	21.73	123.36
25.	Mizoram	0.25	0.97	6.94	10.99	23.10
26.	Nagaland	5.10	3.57	12.46	13.57	41.23
27.	Odisha	717.39	578.16	670.32	987.70	5,381.89
28.	Puducherry	11.32	12.43	9.31	12.55	76.75
29.	Punjab	189.44	158.46	184.89	247.47	1,259.27
30.	Rajasthan	734.12	670.00	711.82	1,102.16	5,394.43
31.	Sikkim	10.99	17.28	28.24	36.18	114.91
32.	Tamil Nadu	1,072.26	1,174.07	1,432.06	1,558.66	8,459.93
33.	Telangana	445.80	627.71	685.87	1,006.63	4,196.60
34.	Tripura	9.40	9.29	15.91	19.26	82.77
35.	Uttar Pradesh	577.98	907.32	1,339.18	1,152.43	5,820.97
36.	Uttarakhand	124.70	160.58	228.08	301.11	1,322.84
37.	West Bengal	423.85	471.48	567.21	759.51	3,826.18
38.	NEC/Not mentioned*	20.97	169.47	0.09	10.12	377.97
39.	PAN India**	9,385.66	7,805.03	5,522.74	5,988.91	53,332.54
40.	PAN India (Other Centralised funds)	1,790.69	3,491.30	1,620.09	1,091.86	12,272.55
	Grand Total	**24,965.82**	**26,210.95**	**26,616.30**	**29,987.92**	**1,84,222.87**

# Data up to March 31, 2024 which is a cut off date of CSR filings for FY 2022-23 [Source: Corporate Data Management Cell]

*Companies did not specify the names of States where projects were undertaken.

** Companies indicated more than one State where projects were undertaken.

Table 7.6
Development sector-wise CSR expenditure#

(in ₹ Cr.)

Sl. No.	Development Sector	Amount Spent FY 2019i-20	Amount Spent FY 2020i-21	Amount Spent FY 2021i-22	Amount Spent FY 2022i-23	Cumulative amount from 2014i-15 to 2022i-23
1.	Agroforestry	67.38	20.90	34.27	65.07	440.60
2.	Animal Welfare	106.12	193.55	168.79	315.98	1,108.96
3.	Armed Forces, Veterans, War Widows/ Dependents	62.06	84.05	47.22	62.27	428.64
4.	Art and Culture	933.57	493.13	248.34	441.02	3,279.88
5.	Conservation of Natural Resources	160.60	92.00	273.82	580.37	1,722.04
6.	Education	7,179.51	6,693.25	6,569.82	10,085.78	53,584.50
7.	Environmental Sustainability	1,470.53	1,030.16	2,433.24	1,960.13	12,217.59
8.	Gender Equality	82.93	43.83	104.67	119.83	628.79
9.	Health Care	4,905.72	7,325.83	7,816.29	6,830.60	40,193.62
10.	Livelihood Enhancement Projects	1,077.72	938.91	854.78	1,654.39	7,458.22
11.	Other Central Government Funds	1,790.69	3,491.29	1,620.09	1,091.85	12,272.54
12.	Poverty, Eradicating Hunger, Malnutrition	1,159.71	1,407.58	1,896.95	1,232.62	9,845.27
13.	Rural Development Projects	2,301.02	1,850.71	1,833.76	2,005.37	16,157.47
14.	Safe Drinking Water	253.40	203.13	182.68	246.36	1,778.91
15.	Sanitation	521.72	338.97	313.26	429.91	3,936.53

(in ₹ Cr.)

Sl. No.	Development Sector	Amount Spent FY 2019-20	Amount Spent FY 2020-21	Amount Spent FY 2021-22	Amount Spent FY 2022-23	Cumulative amount from 2014-15 to 2022-23
16.	Senior Citizens Welfare	52.33	56.47	79.58	132.87	466.43
17.	Setting up Homes and Hostels for Women	48.50	44.52	100.92	48.53	470.30
18.	Setting Up Orphanage	36.50	21.88	27.52	41.24	218.72
19.	Slum Area Development	42.94	88.95	58.38	93.84	541.06
20.	Socio-Economic Inequalities	214.88	149.81	164.90	154.01	1,272.48
21.	Special Education	196.88	209.24	190.52	305.67	1,561.05
22.	Technology Incubators	53.50	62.62	8.57	1.38	231.58
23.	Training to Promote Sports	304.00	243.39	291.85	526.14	2,355.69
24.	Vocational Skills	1,181.23	717.65	1,034.18	1,164.19	6,443.25
25.	Women Empowerment	259.57	206.00	261.34	396.99	1,970.93
26.	NEC/Not Mentioned*	502.79	203.14	0.59	1.50	3,637.81
Grand Total		**24,965.82**	**26,210.95**	**26,616.30**	**29,987.92**	**1,84,222.87**

# Data up to March 31, 2024 which is a cut off date of CSR filings for FY 2022-23 [Source: Corporate Data Management Cell]

*Companies either did not specify the names of Sectors or indicated more than one Sector where projects were undertaken.

National Financial Reporting Authority (NFRA)

7.8.1 The details of salient activities undertaken by NFRA during the period April 1, 2024 to November 30, 2024 are as follows:

i. During the period authority held five meetings on May 15, 2024; June 11, 2024; August 26, 2024; November 11-12, 2024 and November 25, 2024. The outcome of these meetings are as follows:

   a. NFRA, after deliberating on the proposal of Department of Economic Affairs (DEA), Ministry of Finance for Recommendation on the 'Valuation Methodology for At-1 Bonds', finalised and submitted the report to

MCA which was sent to the DEA. Thereafter, in order to align the valuation methodology with the recommendation of NFRA, SEBI issued a circular dated 05.08.2024 regarding Valuation of Additional Tier 1 Bonds ("AT-1 Bonds").

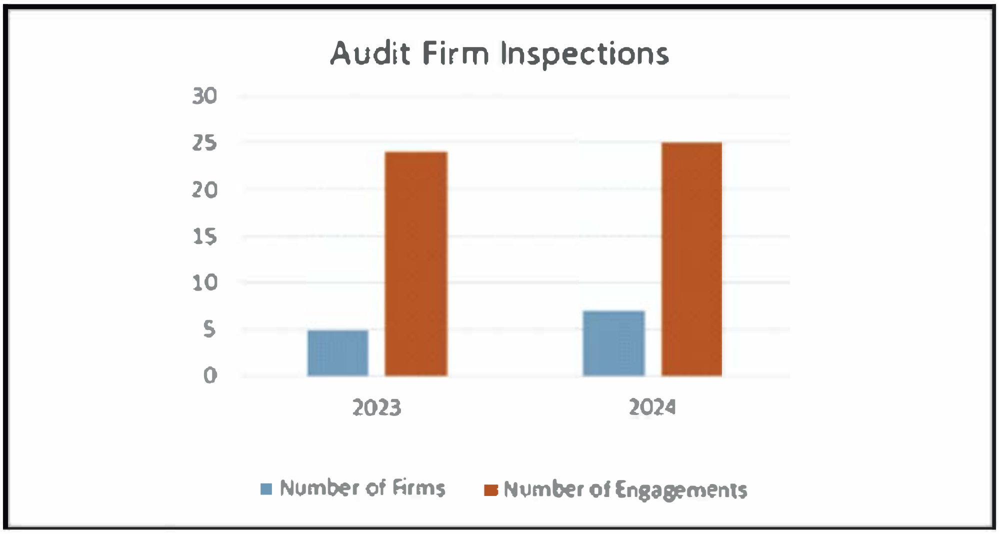
b. NFRA recommended amendments to *International Tax Reform-Pillar Two Model Rules*: **Ind AS 12, *Income Taxes*** and **Ind AS 22**, *Accounting for taxes on income*.

c. NFRA deliberated on Indian Accounting Standard for LLPs u/s 34A of LLP Act 2008 .

d. NFRA finalised and recommended to the Central Government for approval, **40** Standards on Auditing (SAs) and related Standard on Quality Management (SQM) for audit companies, for consideration of first time notification under Section 143 (10) of CA 2013.

ii. NFRA has observed severe deficiencies and lack of understanding on the part of the audit firms and auditors of their responsibilities in law, and improper application of the standards by the Principal and Other auditors. During the period, NFRA issued **19** Disciplinary orders for professional or other misconduct committed by any Chartered Accountant or a Firm of Chartered Accountants.

iii. In line with the global best practices in independent audit regulation, NFRA initiated Audit Firm inspections in the year 2023, with the Inspections of the five largest Audit Firms in terms of the number of audit engagements of public interest entities. During 2024, NFRA inspected seven Audit Firms for their compliance with the general system of audit quality control and conduct of audits in accordance with standards on auditing. Five of these seven Firms were inspected for the second time. In these cases, the inspection also included the remedial measures implemented by the Audit Firms regarding the deficiencies reported in their previous inspection.



7.8.2 NFRA participation in International Events:

i. NFRA participated in plenary meeting of International Forum of Independent Audit Regulators (IFIAR) at Osaka,Japan in April,2024.

ii. NFRA participated in the Association of Southeast Asian Nations (ASEAN) Audit Regulators Group (AARG) Inspection Workshop 2024, held on August 27-28 at the Securities Commission, Kuala Lumpur, Malaysia which brought together audit regulators from ASEAN countries. The workshop served as a vital platform to discuss innovations in audit inspections, ethical breaches by auditors, challenges in auditing digital businesses, and the management of recurring audit findings. It also highlighted significant developments in the audit industry across the region, fostering collaboration among regulators.

iii. NFRA participated in 2024 Public Company Accounting Oversight Board (PCAOB)'s International Institute on Audit Regulation: "Raising the Bar for Audit Quality" held on October 29-30, 2024. Ms. Smita Jhingran, Full Time Member, NFRA was panellist in the panel of Enforcement of said event. The event provided NFRA an opportunity to have latest information and updates in the field of audit regulation from the representatives of other audit regulators, governments, international organizations, and from various countries.

Initiatives taken towards awareness and education of auditors:

i. During the period, NFRA also conducted around **5** webinars on various topics related to financial reporting & auditing and engaged extensively with stakeholders including CEOs, CFOs, Independent Directors and members of professions.

ii. NFRA issued circular dated 03.10.2024 of clarificatory nature in respect of "*Responsibilities of Principal Auditor and Other Auditors in Group Audits*" for the attention of all the stakeholders involved in the financial reporting aspects of the PIEs.

iii. International Collaboration: NFRA has organised a workshop in Delhi in collaboration with Public Company Accounting Oversight Board (PCOAB), USA {India's counterpart in the USA} on September 4-5, 2024 on Investigation and Enforcement.

Indian Corporate Law Service Academy (ICLSA)

7.9.1 The details of various Training Programme(s) conducted by the ICLS Academy are given below:

A. Mandatory Training Programme for ICLS Officers (Group A), as per ICLS Recruitment Rules:

i. **Professional Course Programme (PCP):** It is the flagship programme of the ICLS Academy and is a 21 months

(88 Weeks) residential programme for the directly recruited ICLS Officer Trainees selected through Civil Services Examination. It is a mandatory training as per Rule 9(4) of ICLS Recruitment Rules for clearance of probation period. It comprises of 10 months of Classroom training and 10 months of 'On the Job training' – attachments with various filed offices and arms of Ministry along with a Domestic Study tour component (Bharat Darshan for 3 weeks).

ii. **Intensive Training Programme (ITP) for promoted Officers from Group B:** The ITP is a 58 days training programme for the ICLS officers who are promoted from Group 'B', covering various topics including Establishment related matters, Advanced Accountancy and Corporate Financing by Shri Ram College of Commerce (SRCC), Ind AS, Forensic Audit and Fraud detection by Institute of Chartered Accountants of India (ICAI), Working knowledge of Insolvency and Bankruptcy Code, Companies Act, LLP Act etc and Commercial and Allied Laws by National Law School of India University, Bangalore (NLSIU).

iii. **Mid-Career Training Programme Phase- I (MCTP – I)**: MCTP I is 4 Weeks mandatory training as per Rule 6(d) of ICLS Recruitment Rules and is organized for In-Service ICLS Officers of JTS Level before promotion to STS level.

iv. **Mid-Career Training Programme Phase- II (MCTP – II)**: MCTP II is 4 Weeks mandatory training as per Rule 6(d) of ICLS Recruitment Rules and is organized for In-Service ICLS Officers of STS Level before promotion to JAG level.

v. **Mid-Career Training Programme Phase- III (MCTP – III)**: MCTP III is **4** Weeks mandatory training as per Rule 6(d) of ICLS Recruitment Rules and is organized for In-Service ICLS Officers of JAG Level before placement in JAG (NFSG).

B. **Other Training Programme for ICLS Officers (Group A)**

i. Mid-Career Training Programme Phase- IV (MCTP – IV) is of 2 Weeks duration for In-Service ICLS Officers with 8 years as JAG / NFSG or 17 years as ICLS with 4 years in JAG / NFSG. The Academy is yet to conduct MCTP - IV as of now.

ii. Mid-Career Training Programme Phase-V (MCTP – V) is of 2 Weeks duration for In-Service ICLS Officers with 3 years as SAG or 25 years as ICLS with 1 year in SAG. The Academy is yet to conduct MCTPe V as of now.

iii. Post Graduate Diploma in Business and Allied Laws by National Law School of India University, Bengaluru along with Foreign Study tour for in-service ICLS Officers with 20 classroom teaching days and 2 Weeks of Foreign study tour to National University of Singapore.

iv. Other short term In-service ICLS officer training: Intensive capsule course on IND-AS, Intensive Analysis of Financial Statements, training session for understanding Indian Securities Market with focus on Powers and functions of SEBI for senior officials of the rank JAG and above, Data Analytics using CAAT Tools programme by ICAI, Forensic Audit and Accounting for Fraud Detection by ICAI, CBI Academy Training on Prosecution and related mechanism for Senior ICLS officers, Building Competencies for personal Excellence by Art of Living etc.

C. **Mandatory Training Programme for ICLS Feeder Cadre, as per Recruitment Rules:**

i. Mandatory Promotional Training for ICLS Feeder Cadre (STA / JTA etc) before promotion to JTS of ICLS (Gr.A). The duration is 2-4 weeks and is mandatory Training as per Rule 6(d) of ICLS Recruitment Rules.

ii. Mandatory Training for direct recruit STA (Group B, ICLS Feeder Cadre) selected through Staff Selection Commission is of 4 weeks and is mandatory, as per Schedule 10(ii) of STA Recruitment Rules, as a pre-condition for clearance of probation.

iii. Training for promotee STAs (Group B, ICLS Feeder Cadre), either before their promotion as STA or within 2 years of their promotion as STAs. The duration is 4 weeks and is mandatory as per Schedule 10(iii) of STA Recruitment Rules, as a pre-condition for clearance of probation.

iv. Robust training for serving STAs and JTAs : A 4 weeks training programme to strengthen the cadre of serving STAs / serving JTAs being made mandatory training as per the directions of the Ministry.

D. Institutional Tie-Ups

ICLS Academy's major milestones during the last 5 years regarding various institutional arrangements/tie ups with the leading educational and training Institutions in India after March 2018 are as follows:

i. **Shri Ram College of Commerce (SRCC)** for Book Keeping and Accounting, Advanced Accounting, consolidation, valuation and Advanced Auditing.

ii. **National Institute of Securities Markets (NISM)** for Understanding Securities Laws.

iii. **National Law School of India University, Bangalore (NLSIU)** for Business and other Allied Laws (PGDBAL).

iv. **The Institute of Chartered Accountants of India (ICAI)** for forensic Accounting and fraud detection and Big Data Analysis.

v. **Art of Living, Bangalore (AOL)** for Building Competencies for Personal Excellence.

vi. **National Forensic Sciences University, Gujarat (NFSU)** for Training Programme on Digital Forensics.

7.9.2 The Training Programmes conducted by ICLS Academy during last 3 years (2022-23 to 2024-25 upto 30.11.2024) are given in **Table 7.7** below:

Table 7.7
Training Programmes conducted during 2022-23 to 2024-25 (Upto 30.11.2024)

S. No.	Training Programme	2022 -23	2023 -24	2024 -25 (upto 30.11.2024)
1.	Professional Course Programme – (PCP) Induction (21 Months) for ICLS OTs through UPSC CSE	11th PCP (2020 batch) (upto 10/2022)*	12 th PCP (2021 batch) (upto 11/2023)*	13th PCP (2022 Batch) (upto 07/2024)*
		12th PCP (2021 batch)*	13th PCP (2022 Batch)*	14th PCP (2023 Batch)
		13th PCP (2022 Batch) (from 12/2022)	14th PCP (2023 Batch)	15th PCP (2024 Batch) Commenced from 02.12.2024
2.	Intensive Training Programme (ITP) (58 days) for ICLS Promoted Officers	1 st ITP	2nd ITP Phase I	-
3.	STA/CP -Rule 6(d)	-	-	1
4.	MCTPPhase – 1 (4 weeks)	-	1	2
5.	MCTPPhase – II (4 weeks)	-	-	2
6.	MCTP Phase – III (4 weeks)	-	-	2
7.	MCTP Ph -IV (2 weeks)	-	-	-
8.	MCTP Ph -V (2 weeks)	-	-	-
9.	Mandatory Training Programme for Direct Recruit Senior Technical Assistants (DR -STA)	-	1 - DR -STA	1 - STA 1 - JTA
10.	Other Short Term Training	2 (I4C, ASO)	1(SFIO)	-
11.	Total No. of Trainings	6	7	12

7.9.3 The Training Programme(s) / Major Events of ICLS Academy are listed below:

i. Eight (08) ICLS Officer Trainees of 2022 Batch completed their 21 months Induction Training (13th Professional Course Programme) and were given postings in various offices of Ministry w.e.f.19.07.2024.

ii. 07 ICLS Officer Trainees of 13th Professional Course Programme 2022 Batch went on Domestic Study Tour (DST) from 26.06.2024 to 16.07.2024, for acquiring functional knowledge from various field offices of the Ministry across the country.

iii. Mandatory 9th & 10th Mid Career Training Programme (MCTP) - Phase III for JAG Level Officer.

iv. Mandatory 10th & 11th Mid Career Training Programme (MCTP) - Phase II for STS Level Officers.

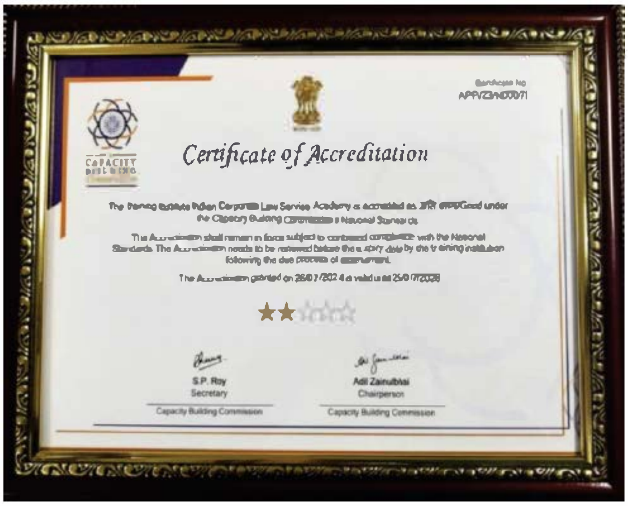
v. Mandatory 12th & 13th Mid Career Training Programme (MCTP) - Phase I for JTS Level Officers.

vi. Mandatory 19th Training Programme training for Senior Technical assistants (STAs) & 07 Group B Gazetted Officers of SFIO.

vii. 4th Round of Mandatory Promotional training for STAs & CPs under rule 6(d) of ICLS Rules

viii. Mandatory 20th Training Programme training for Senior Technical assistants (STAs) promoted from JTA.

7.9.4 The Indian Corporate Law Service Academy (ICLSA) was granted accreditation as a Central Training Institute (CTI) by the Capacity Building Commission (CBC) under the assessment of National Standard for Civil Service Training Institution (NSCSTI) accredited framework involved in civil service capacity building, the Department of Personnel and Training (DoPT), on July 26, 2024. The accreditation certificate was presented by Shri Jitendra Singh, the Minister of State for Personnel, Public Grievances, and Pensions of India, during the Civil Service Training Institute Convention held on August 12, 2024, at Vigyan Bhawan in New Delhi.



Certificate of Accreditation

S.P. Roy
Secretary
Capacity Building Commission

Adil Zainulbhai
Chairperson
Capacity Building Commission

National Foundation for Corporate Governance (NFCG)

7.10.1 NFCG was set up in the year 2003 by the Ministry in partnership with Confederation of Indian Industry, Institute of Company Secretaries of India and Institute of Chartered Accountants of India to promote good Corporate Governance practices both at the level of individual corporates and Industry as a whole. Subsequently, Institute of Cost Accountants of India and National Stock Exchange (NSE) and IICA were also included in NFCG as its Trustees.

7.10.2 The vision of NFCG is to facilitate and become the reference point for the high standards of Corporate Governance in India. To achieve its objectives, NFCG has been working closely with Partner Institutions (i.e., MCA, CII, ICSI, ICAI, ICoAI, NSE and IICA) and Accredited Institutions as National Centre for Corporate Governance (NCCG) in building capacity of the corporate professionals including the directors of the companies, conducting academic research works and organizing various programmes aimed at promoting voluntary adoption of Corporate Governance as the key to sustainable wealth creation.

Citizen's/Client's Charter

7.11.1 MCA, being a regulatory Ministry, has regular public interactions for performing its regulatory functions, which most often take form of rendering its services to various stakeholders. The Ministry has posted a detailed Citizen's/Client's Charter, accessible on its website. In this Charter, the Ministry has given a detailed list of services/transactions, processes involved, requisite documents and fees applicable in its Citizen's Charter. It has also set the standards of performance/time limits against each of the services/transactions. The same is at **Annexure-VI** of this Report.

Representation of Scheduled Castes (SCs), Scheduled Tribes (STs), and Other Backward Classes (OBCs)

7.12.1 The representation of Scheduled Castes (SCs), Scheduled Tribes (STs) and Other Backward Classes (OBCs) in the Ministry in respect of cadres under the purview of Administration-I Section is shown in **Table 7.8**

Table 7.8
Representation of SCs, STs and OBCs among Officers/ Officials group-wise
(As on November 30, 2024)

Group	Sanctioned Strength	In position				
		OBC	SC	ST	PWD (VH)	Total
A	68	04	07	01	0	59
B	98	15	16	01	01	72
C	84	12	12	00	02	62
Total	**250**	**31**	**35**	**02**	**03**	**193**

7.12.2 The representation of Scheduled Castes (SCs), Scheduled Tribes (STs) and Other Backward Classes (OBCs) in the Ministry in respect of employees working in field offices and headquarters under administrative control of Administration-II Section is shown in **Table 7.9** below:

Table 7.9
Representation of SCs, STs and OBCs in the Headquarter and Field Offices
(As on November 30, 2024)

Group	Sectioned Strength	In position						
		Total	SC	ST	OBC	EWS	PH	Other (UR)
A	293	248	34	23	55	06	02*	130
B	393	311	57	36	61	08	08*	149
C	687	157	32	20	34	01	02	68
Total	**1,373**	**716**	**123**	**79**	**150**	**15**	**2**	**347**

(*PH category officials belong to various categories such as SC, ST, OBC, EWS and UR. Hence, they are not included in the Total of Rows and Columns in order to avoid double counting)

Investor Grievance Management Cell (IGMC)

7.13.1 The Ministry received 8,656 (with a backlog of 700) grievance petitions from the investors/depositors on the CPGRAM Portal from April 1, 2024 to November 30, 2024. As on November 30, 2024, a total of 8,991 grievances were resolved with subordinate offices.

7.13.2 Further IGM Section received 209 off-line grievances out of which 16 grievances pertaining to other agencies & ministries, were sent to respective offices such as Ministry of Cooperation, Ministry of Finance, Department of Economic Affairs, SEBI, DoP&T, Department of Consumer Affairs, etc. and the remaining 193 grievances pertaining to Ministry of Corporate Affairs were sent to different sections/divisions of MCA & its subordinate offices.

Right To Information (RTI)

7.14.1 The Ministry of Corporate Affairs is a Public Authority under the provisions of the RTI Act, 2005. To comply with the provisions of the Right to Information Act, 2005, the Ministry made arrangements under this landmark Act.

7.14.2 In order to fulfil the obligations and provisions under Section 4(1)(b) of the RTI Act, 2005, the updated information has been uploaded on the website (www.mca.gov.in) of the Ministry along with brief description of subject matters dealt by various Sections/Divisions/Cells of the Ministry. The information is being kept in the public domain and is updated regularly. The officers of the Ministry have been declared as the Central Public Information Officers (CPIOs) and the Appellate Authorities (AAs) as per their allotted work. Field offices under this Ministry have also been declared as Public Authorities under the RTI Act. Applications/appeals under right to information are also being received through Central Assistant Public Information Officers (CAPIOs) nominated at Sub-Divisional level or Sub-District level by the Department of Posts. Further, most of the Public Authorities of the Ministry have been aligned with the RTI-MIS Portal which facilitate the citizens to make applications and appeals online.

7.14.3 Similarly, arrangements to implement proactive disclosures have been made by other Public Authorities under the ambit of MCA viz. NCLT, CCI, SFIO, IICA, NCLAT, ICAI, ICSI, ICoAI, NFRA, IBBI and IEPF.

7.14.4 The statistics in respect of applications and appeals received under the right to information in the MCA(Hqrs.) from April 1, 2024 to November 30, 2024 are given below in **Table 7.10**:

Table 7.10
Details of RTI Requests and Appeals from 01.04.2024 to 30.11.2024

Sl. No.	Description	Number
1.	Total no. of applications received	1,944
2.	Transferred to other Public Authorities	1,096
3.	Decisions where requests for information were rejected	1
4.	Total no. of appeals received	120
5.	No. of cases where disciplinary action was taken against any officer in respect of administration of the Act	Nil
6.	No. of cases where CIC imposed penalty	Nil

International Cooperation

7.15.1 Prior approval of the Hon'ble Union Minister of Corporate Affairs was taken during the period from April 1, 2024 to November 30, 2024 for the following MoUs/MRAs:

Table 7.11

Sl. No.	Subject/Title	Cabinet approval date	Signing date
1.	Addendum to the existing MoU between the Institute of Cost Accountants of India (ICoAI) and the Association of Chartered Certified Accountants (ACCA), United Kingdom	13.09.2024	07.10.2024

Budget of the Ministry 2024-25

7.16.1 The details of the Revenue Receipts and Expenditure (Capital and Revenue) of the Ministry are given below (**Table 7.12** and **Table 7.13**):

Table 7.12
Revenue Receipts

(₹ in Crore)

Year	2020 -21	2021 -22	2022-23	2023-24	2024 -25 (as on 30.11.2024)*
Revenue	2,125.46	2,933.50	2,917.98	6,897.81	3070.60

Table 7.13
Expenditure (Revenue & Capital)

(₹ in crore)

Item	Actual Expenditure 2023 -24	Budget Estimate 2024 -25	Actual Expenditure 2024 -25 (up to 30.11.2024)
Revenue	553.09	2,611.96	380.90
Capital	37.73	55.1	8.48
Total	**590.82**	**2,667.06**	**389.38**

CHAPTER-VIII

PROFESSIONAL INSTITUTES UNDER THE AEGIS OF THE MINISTRY OF CORPORATE AFFAIRS

8.1.1 There are three professional institutes under the administrative control of the Ministry of Corporate Affairs. These institutes are The Institute of Chartered Accountants of India (ICAI), The Institute of Cost Accountants of India (ICoAI) and The Institute of Company Secretaries of India (ICSI). The major activities undertaken by these institutes during April 1, 2024 to November 30, 2024 are detailed below.

Institute of Chartered Accountants of India (ICAI)

8.2.1 The ICAI is a statutory body established by an Act of Parliament, viz. the Chartered Accountants Act, 1949 for regulating and developing the profession of Chartered Accountancy in the country. The Institute, functions under the jurisdiction of the Ministry of Corporate Affairs, Government of India. With about 4 lakh members and more than 8.5 lakh active students, the ICAI is the largest professional body of Accountancy Profession in the world. Since 1949, this profession of Chartered Accountancy has grown leaps and bounds in terms of members as well as student base.

8.2.2 The affairs of the ICAI are managed by the Council in accordance with the provisions of the Chartered Accountants Act, 1949 and the Chartered Accountants Regulations, 1988 and Rules framed thereunder. The Council constitutes of 40 members of whom 32 are elected by the Chartered Accountants and remaining 8 are nominated by the Central Government. ICAI is headquartered at Delhi with 5 Regional Councils along with 177 Branches across India and 52 Overseas Chapters, 29 Representative Offices & 2 Overseas Offices having its presence in 81 Global Cities in 47 Countries.

8.2.3 The following major events were organized under the aegis of the ICAI from April 1, 2024 to November 30, 2024:

i. Shri Nitin Gadkari, Hon'ble Minister of Road Transport and Highways of India graced the event organised by ICAI to celebrate 75 years of trust, honouring Chartered Accountants hard work and contributions to national development on July 1, 2024. The event showcased the achievements of Chartered Accountants and future plans in the Kartavya Kaal to realize a Viksit Bharat. The event was held at Bharat Mandapam, invited all CAs and was attended by numerous dignitaries, including R. Venkataramani, Attorney General of India; Dr. Manoj Govil, former Secretary of the Ministry of Corporate Affairs; Shri S. Krishnan, Secretary of the Ministry of Electronics and Information Technology; CA Ranjeet Aggarwal President of ICAI and others.

(Dr.) Girish Ahuja
Mr. Heshana Kuruppu
CA. Prafulla P. Chhajed
Ranjeet Kumar Agarwal

75 Years of Trust- Celebrating the Excellence, Independence and Integrity of the CA Profession

ii. Shri Girish Chandra Murmu, Former Comptroller and Auditor General of India (C&AG) graced the event organised by ICAI on theme *"Sashakt Bharat: An Initiative to Strengthen Local-Self Government Accounting"* with the aim to foster collaboration and innovation in the realm of local governance on October 1-2, 2024 in association with O/o C&AG. With over 350 officials from local bodies across India participating, the conclave aspired to bolster transparency and efficiency in local self-governance, aligning with the vision of a Viksit Bharat.

Local Governance Synergy Conclave
सशक्त भारत : An Initiative to strengthen Local-self Government Accounting
(स्थानीय स्वशासन की विकसित भारत में भूमिका)
Chief Guest

Local Governance Synergy Conclave 'Sashakt Bharat: An Initiative to Strengthen Local-Self Government Accounting'

iii. Shri Harsh Malhotra, Hon'ble Minister of State for Corporate Affairs graced the event organised by ICAI to commemorate its 75 years of service to the nation with the grand 'CA Run for Viksit Bharat' on June 30, 2024. The event was attended by more than 10000 Participants, including members and students from across the globe, and began the run at 6:00 AM from 5 Regional Councils, 176 Branches, and various Chapters. In New Delhi, the run commenced from ICAI Headquarters and concluded at Major Dhyan Chand National Stadium.

THE INSTITUTE OF CHARTERED ACCOUNTANTS OF INDIA
(Set up by an Act of Parliament)
START
CA INDIA
RUN

ICAI unites for a nationwide 'CA Run for Viksit Bharat'

iv. Shri Harsh Malhotra, Hon'ble Minister of State for Corporate Affairs, along with CA. Ranjeet Kumar Agarwal, President of ICAI inaugurated the 4th Global Education Summit in Commerce and Accountancy (GESCA) 2024 on July 5-6, 2024 at New Delhi. The GESCA 2024 had participation from 36 Vice-Chancellors of various universities, along with representatives from 115 top universities and 30 autonomous colleges across the country.

4th Global Education Summit in Commerce & Accountancy

The Institute of Cost Accountants of India (ICoAI)

8.3.1 The Institute of Cost Accountants of India (erstwhile The Institute of Cost and Works Accountants of India) was first registered as "Indian Institute of Cost and Works Accountants" on June 14, 1944, under the Indian Companies Act, 1913. On May 28, 1959, the Institute was established by a special Act of Parliament, namely, the Cost and Works Accountants Act, 1959 as a statutory professional body for the regulation and development of the profession of Cost Accountancy. The name of the institute has been changed to Institute of Cost Accountants of India by the Chartered Accountants, the Cost and Works Accountants and the Company Secretaries (Amendment) Act, 2022.

8.3.2 The Institute has 1 lakh qualified Cost Accountants and over 5 lakh students pursuing the Cost Accountancy Course. The Institute is headquartered in Kolkata and has four Regional Councils at Kolkata, Delhi, Mumbai and Chennai; 116 Chapters in India and 11 Overseas Centres. The Institute is a founder member of the International Federation of Accountants (IFAC), the Confederation of Asian and Pacific Accountants (CAPA) and the South Asian Federation of Accountants (SAFA).

8.3.3 The following major events were organized under the aegis of the ICoAI from April 1, 2024 to November 30, 2024:

i. Smt. Nirmala Sitharaman, Hon'ble Union Minister of Finance & Corporate Affairs (FM & CAM), attended an Interaction Programme organised by Bengaluru Chapter of ICoAI and ICSI on April 22, 2024 at Bengaluru, Karnataka, India. Hon'ble FM & CAM while addressing members of ICoAI & ICSI acknowledged the role of both the professionals in nation building and highlighted the importance and key role of Management Accounting. The program was also attended by CMA Ashwin G. Dalwadi, President, ICoAI, CS B. Narasimhan, President, ICSI and representatives of Bengaluru Chapter of ICoAI and ICSI.

Smt. Nirmala Sitharaman, Hon'ble Union Minister of Finance & Corporate Affairs, attended an Interaction Programme organised by Bengaluru Chapter of ICoAI and ICSI

ii. Shri Ramesh Bais, Hon'ble Governor of Maharashtra inaugurated the National Seminar organised by Management Accounting Committee of ICoAI on the title ***"Navigating the New Frontier: Management Accounting in the Era of Real-Time Insights, Sustainable Growth, and Cybersecurity"*** *on May 6, 2024* in Mumbai, to celebrate the International Management Accounting Day. This event aimed to explore the evolving landscape of Management Accounting in today's dynamic business environment.

Management Accounting Committee
ICMAI
THE INSTITUTE OF COST ACCOUNTANTS OF INDIA
NATIONAL SEMINAR
Navigating the New Frontier: Management Accounting in the Era of Real-time Insights, Sustainable Growth and Cybersecurity
CMA

Shri Ramesh Bais, Hon'ble Governor of Maharashtra inaugurated the National Seminar organised by Management Accounting Committee of ICoAI

iii. Shri Bhupendrabhai Patel, Hon'ble Chief Minister of Gujarat, shared his valuable message to the Cost and Management Accountants (CMA) fraternity, which was displayed during the **61st National Cost and Management Accountants' Convention (NCMAC- 2024)** organised by ICoAI on June 27-29, 2024 at Tent City 2, Ekta Nagar, Statue of Unity, Gujarat, India. The convention themed on **"Viksit Bharat 2047: Synergizing Catalysts for Sankalp to Siddhi"** which resonates deeply with vision for a developed India by 2047, a century after independence, was inaugurated by CMA D.C. Bajaj, Former President, ICoAI. The deliberations held during the convention highlighted the pivotal role of cost and management accountants in realizing the vision of a developed India by 2047.

ICMAI
THE INSTITUTE OF COST ACCOUNTANTS OF INDIA
Statutory Body under an Act of Parliament
CMA
FIRST EVER RESIDENTIAL NATIONAL CONVENTION OF ICMAI
VIKSIT BHARAT 2047

CMA D.C. Bajaj, Former President, ICMAI graced the Convention organised by ICoAI

The Institute of Company Secretaries of India (ICSI)

8.4.1 ICSI is the only recognized professional body in India to regulate and develop the profession of Company Secretaries. It is a premier national professional body set up under an act of Parliament viz. the Company Secretaries Act, 1980.

8.4.2 ICSI provides top-quality education to the students of Company Secretaryship (CS) Course and quality standards to CS Members. At present, ICSI has more than 73 thousand Members and around 2 lakh students.

8.4.3 The Council of the ICSI manages its affairs in accordance with the provisions of the Company Secretaries Act, 1980 and the Company Secretaries Regulations, 1982 (as amended from time to time). The Council consists of fifteen elected Members, including the President & the Vice-President and five persons nominated by the Central Government.

8.4.4 ICSI has its Headquarters at New Delhi; 04 Regional Councils at Chennai, Kolkata, New Delhi and Mumbai; 03 Centres for Corporate Governance, Research and Training (ICSI - CCGRT) at Navi Mumbai, Hyderabad, and Kolkata; 73 Chapters across India and 06 Overseas Centres. The ICSI has also established five section 8 companies namely: ICSI Institute of Insolvency Professionals, ICSI Registered Valuers Organisation, ICSI International ADR Centre, ICSI Institute of Social Auditors, and Institute of Governance Professionals of India.

8.4.5 The following major events were organized under the aegis of the ICSI from April 1, 2024 to November 30, 2024:

i. Shri Harsh Malhotra, Hon'ble Minister of State for Corporate Affairs, Government of India graced the Mega Programme of Capital Markets Week 2024 held on the theme "Viksit Bharat: Economic Acceleration through Capital Markets" from June 28 to July 04, 2024 at Delhi.

ii. Shri Asim Arun, Hon'ble Minister of State (I/C) for Social Welfare, Scheduled Caste and Tribal Welfare presided over 25th National Conference of Practising Company Secretaries organized at Ayodhya on the theme "Role of Company Secretary in Viksit Bharat @2047". The Conference witnessed the presence of around 500 delegates present in person and 3800 delegates connected virtually from different parts of the country.

iii. Smt. Anupriya Patel, Hon'ble Minister of State for Health & Family Welfare and Chemicals & Fertilizers presides over 56th Foundation Day of ICSI on the theme, Governance for Sustainable Growth. The event also witnessed the presence of Pride of the Nation, Shri Harvinder Singh, Indian Paralympic Archer and Gold Medalist, Paris Para Olympic 2024, and Ms. Anjali Devi, Gold Medalist, World Boccia Challenger, Cairo 2024.

iv. Shri Suresh Gopi, Hon'ble Minister of State for Tourism and Petroleum & Natural Gas, Govt. of India inaugurated the new building of ICSI Kochi Chapter along with CS Nagendra D. Rao, Former President, The ICSI, Guest of Honour in the august presence of Shri B. Narasimhan, President, CS Dhananjay Shukla, Vice President and CS Asish Mohan, Secretary, The ICSI along with other Central Council and Regional Council Members (SIRC).

CHAPTER-IX

THE PRIME MINISTER'S INTERNSHIP SCHEME

9.1.1 The Prime Minister's Internship Scheme in top Companies was announced in the Budget 2024-25. It aims to provide internship opportunities to one crore youth in top 500 companies over five years. Through this Scheme, youth will gain exposure to real-life business environment, across varied professions and employment opportunities.

9.1.2 To roll-out this ambitious Scheme, a Pilot Project of the Scheme, targeted at providing 1.25 lakh internship opportunities during FY 2024-25, was launched on October 3, 2024 through an online portal, accessible at www.pminternship.mca.gov.in This Portal acts as a centralized platform for managing the entire internship lifecycle.

9.1.3 Partner companies for this Pilot Project have been identified on the basis of the average of CSR expenditure of the last three years and are available in the PM Internship Portal. Participation of the companies in this Scheme is voluntary. Apart from these companies, any other company/ bank / financial institution desirous of participating in the Scheme, may do so with the approval of the MCA, which would take a view considering sectors and areas under represented by the above mentioned 500 companies.

9.1.4 The duration of the internship under the Scheme is 12 months. At least half of the internship period must be spent in the actual working experience/ job environment, and not in the classroom. The Scheme is open for youth aged between 21 and 24, belonging to Indian nationality, who are not employed full-time and not engaged in full-time education. Candidates who have passed High School, Higher Secondary School, who possess a certificate from an ITI, hold a diploma from a Polytechnic Institute, or are graduates with degrees such as BA, B.Sc, B.Com, BCA, BBA, B.Pharma, etc. are eligible to apply under theScheme.

9.1.5 The Scheme is designed to provide an opportunity to the interns to experience real-world business environments, thereby equipping them with practical experience that enhances their employability. A certificate of internship will also be given by the Partner Companies to the interns upon completion of the internship, giving interns an advantageous association with reputable companies on their resume, which can be a significant boost to their career prospects. Further, the interns will be provided with financial assistance of Rs. 5,000 per month, of which Rs. 4500 will be disbursed by the government, and Rs. 500 per month will be paid by the company from its CSR funds. Additionally, a one-time grant of Rs. 6,000 for incidentals will be disbursed by MCA to each intern, upon joining the place of internship. Insurance coverage under the Pradhan Mantri Jeevan Jyoti Bima Yojana and Pradhan Mantri Suraksha Bima Yojana would be provided to the interns by the Government of India. Expenditures associated with the training of interns under the Scheme, would be borne by the company from its CSR funds, as per the extant rules. In case, any Company wishes to provide monthly assistance over and above Rs.500, it may do so from its own funds.

9.1.6 The Portal was opened for Partner Companies on October 3, 2024 to offer internship opportunities. Till November 30, 2024, Partner companies have posted approximately 1.27 lakh internship opportunities on the portal. Further, the portal was opened on October 12, 2024 for the youth to register themselves, and on November 24, 2024 the portal was opened for application by the candidates. Till November 30, 2024, approximately 4.87 lakh youths completed their KYC on the Portal.

ANNEXURE
(I to XIII)

Annexure-I

Smt. Nirmala Sitharaman, Minister
↓
Shri Harsh Malhotra, Minister of State
↓
Ms. Deepti Gaur Mukerjee, Secretary
↓

AS(AT) Anuradha Thakur	**AS& FA Kamini Chauhan Ratan**	**Sr. EA Santanu Mitra**	**DGCoA Sanjay Shorey**	**JS(BD) Balamurugan D**	**JS(ID) Inder Deep Singh Dhariwal**	**JS(AS) Anita Shah Akella**	**Adviser (Cost) Manish Goswami**	**DDG Sidhil Sasi**
(CL-II/ O/o DGCoA, Ad.II, Ad.III, CAB, R&A Division, Statistics Division, ICLS Academy, Legal, PMIS)	**(IFD, Budget)**	**(R&A Division)**	**(CL-II Section, IGM)**	**(CL-I, CL-V, Competition, CL-VII & NIDHI Companies, Vigilance)**	**(NFRA, Cash, General, Admn.I, PI, Coordination, Parliament, RTI, Hindi, CSR, CL-III, NFCG, IC, IICA, Action plan for champion Sector)**	**(Ad.IV, Insolvency, Infrastructure, IEPF, OL)**	**(Cost Audit Branch)**	**(Statistics Division/ CDM, e-gov/ MCA21)**
Dir(L&P): R.K. Tiwari Dir(RS): Rajiv Shankar Dir(CLG): ChuniLal Ghosh US(RK): Randhir Kumar US(SMP): S M Pathak US(MK): Manoj Kumar DD(AP): Alok Pandey DD(EN): E Nagachandran DD(NP): Nitin Phartyal AD(HS): Himani Sharma AD(SA): Shiva Agarwal	CCA: Dhruva Kumar Singh DS(JS): Jitendra Sihwag US(AKR): Arvind Kumar Ranjan	Dir.(DK): Deepak Kumar DD(AA): Md Alam Ansari DD(BKM): Bikash Kumar Malick	DII(RKD): R.K. Dalmia DII(MKS): M K Sahu DS(PKD): PK Dutta JD(LPK): L.P. Kolla JD(SB): Sridhar Bavisetty JD(MS): Md. Shakeel JD(SR): Satyajit Roul JD(LS): Lata Sisodiya Saxena US(S): Satyawan US(SN): Narayanan. S DD(SPS): Satya Pal Singh DD(AC): Arjun C DD(SG): Shefali Gupta DD(VBS): Varun BS AD(BB): B. Bhuvaneswari	Dir.(RS): Rajiv Shankar Dir(PM): Pawan Mehta DS(PKD): PK Dutta JD(ND): NK Dua JD(CMK): CM Karlmarx US(MK): Manoj Kumar US(PS): Paras Sarwaiya DD(DP): Dizianglung Panmei DD(AK): Amit Kumar DD(VIA) Vania Indrajit Ajmalbhai DD(PP): Pattem Prem Prakash AD(CB): Chiradeep Balooni	Dir(ASM): Amar Singh Meena Dir(ND): Nilratan Das Dir(KR): Kiran Reddy Dir(PM): Pawan Mehta Dir(RKV): Ravi Kr. Verma Dir(TS): Tharvinder Singh US(S): Satyawan US(HK): Hemant Kumar US(PR): Prashant Rastogi US(AKS): Akhilesh Kr.	Dir(ASM): Amar Singh Meena Dir(ND): Nilratan Das Dir(KR): Kiran Reddy Dir(RKV): Ravi Kr. Verma US(AC): Anil Chander Kandpal US(HK): Hemant Kumar DD(SC): Shatrughan Chauhan AD(GSK): GS Kate	Dir(CLG) :ChuniLal Ghosh DD(SS): Sumit Sachdeva DD(DDA) :Devanshi Agarwal AD(SA): Shubam Agarwal AD(KG): Kapil Goyal	Dir(KR): Kiran Reddy JD(RCM): RC Mishra US(AKS): Akhilesh Kumar Singh US(PR): Prashant Rastogi DD(VM): Vivek DD(HR): Harshavardhan Reddy AD(TB): Tushar Bardolai

					Singh US(RK): Randhir Kumar US(PS): Paras Sarwaiya US(PK): Praveen Kumar US(AR): A. Ravindran DD(AH): Arshad Husain DD(SG): Shikha Garg AD(RB): Ranbir Singh AD(LS): Liladhar Sharma			
Chief Vigilance Officer: Balamurugan D, JS & CVO; Web Information Manager: Vivek, DD; Welfare Officer: Tharvinder Singh, Director								

Annexure-II

Notifications issued during April 1, 2024 to November 30, 2024 under the Companies Act, 2013

Sl.No.	Notification Number	Date	Subject
(1)	(2)	(3)	(4)
1.	G.S.R NO. 403 (E)	15.07.2024	The Companies (Management and Administration) Amendment Rules, 2024
2.	G.S.R NO. 404 (E)	15.07.2024	The Companies (Significant Beneficial Owners) Amendment Rules, 2024
3.	S.O. 2751 (E)	15.07.2024	The Specified Companies (Furnishing of information about payment to micro and small enterprise suppliers) Amendment Order, 2024
4.	G.S.R NO. 411 (E)	16.07.2024	The Companies (Incorporation) Amendment Rules, 2024
5.	G.S.R NO. 412 (E)	16.07.2024	The Companies (Appointment and Qualification of Directors) Amendment Rules, 2024
6.	GSRiNO. 413 (E)	16.07.2024	Nidhi (Amendment) Rules, 2024
7.	G.S.R NO. 475 (E)	05.08.2024	The Limited Liability Partnership (Amendment) Rules, 2024
8.	G.S.R NO. 476 (E)	05.08.2024	The Companies (Adjudication of Penalties) Amendment Rules, 2024
9.	G.S.R NO. 491 (E)	12.08.2024	The Companies (Registration of Foreign Companies) Amendment Rules, 2024
10i.	G.S.RiNO. 492 (E)	12.08.2024	The Companies (Indian Accounting Standards) Amendment Rules, 2024
11.	G.S.RiNO. 554 (E)	09.09.2024	The Companies (Indian Accounting Standards) Second Amendment Rules, 2024
12.	G.S.RiNO. 555 (E)	09.09.2024	The Companies (Compromise, Arrangements and Amalgamation) Amendment Rules, 2024
13.	G.S.R NO. 583 (E)	20.09.2024	The Companies (Prospectus and Allotment of Securities) Amendment Rules, 2024
14.	G.S.RiNO. 587 (E)	24.09.2024	The Companies (Accounts) Amendment Rules, 2024
15.	G.S.R NO. 602 (E)	28.09.2024	The Companies (Indian Accounting Standards) Third Amendment Rules, 2024
16.	G.S.R NO. 630 (E)	09.10.2024	The Companies (Adjudication of Penalties) Second Amendment Rules, 2024

Circulars issued during April 1, 2024 to November 30, 2024 under the Companies Act, 2013

Sl. No.	Circular Number	Date	Subject
(1)	(2)	(3)	(4)
1.	Circular No. 03/2024	07.05.2024	Relaxation of additional fee and extension of the last date of filing of Form No. LLP BEN – 2 and LLP form No. 4D under LLP Act, 2008.
2.	Circular No. 04/2024	04.07.2024	Filing of Forms (BEN -2, MGT -6) due to migration from V2 version to V3 in MCA21 Portal from July 04, 2024 to July 14, 2024 reg.
3.	Circular No. 05/2024	06.07.2024	Extension of time for filing PAS -7 reg.
4.	Circular No. 09/2024	19.09.2024	Clarification on holding of Annual General Meeting (AGM) and EGM through Video Conference (VC) or other Audio Visual Means (OVAM) and passing of Ordinary Resolution and Special Resolution by the Companies under the Companies Act, 2013 read with Rules made thereunder.

Annexure-IV

Composition of the National Company Law Appellate Tribunal (as on November 30, 2024)

Sl. No.	Name	Post
1.	Justice Shri Ashok Bhushan	Chairperson
2.	Justice Shri Rakesh Kumar Jain	Judicial Member
3.	Justice Shri Yogesh Khanna	Judicial Member
4.	Justice Shri Sharad Kumar Sharma	Judicial Member
5.	Shri Barun Mitra	Technical Member
6.	Shri Naresh Salecha	Technical Member
7.	Shri Ajai Das Mehrotra	Technical Member
8.	Shri Arun Baroka	Technical Member
9.	Shri Indevar Pandey	Technical Member
10.	Shri Jatindranath Swain	Technical Member

Judicial Members of the National Company Law Tribunal (as on November 30, 2024)

Sl.iNo.	Name	Post
1.	Chief Justice Ramalingam Sudhakar	President
2.	Shri Harnam Singh Thakur	Judicial Member
3.	Shri Deep Chandra Joshi	Judicial Member
4.	Shri Kishore Vemulpalli	Judicial Member
5.	Shri Bachu Venkat Balaram Das	Judicial Member
6.	Dr. N.V. Ramakrishna Badarinath	Judicial Member
7.	Shri Kuldip Kumar Kareer	Judicial Member
8.	Bidisha Banerjee	Judicial Member
9.	Shri Praveen Gupta	Judicial Member
10.	Shri Ashok Kumar Bhardwaj	Judicial Member

Sl.iNo.	Name	Post
11.	Shri Sanjiv Jain	Judicial Member
12.	Shri Mahendra Khandelwal	Judicial Member
13.	Shri Shammi Khan	Judicial Member
14.	Shri Manni Sankariah Shanmuga Sundaram	Judicial Member
15.	Mrs. Chitra Ram Hankare	Judicial Member
16.	Shri Rajeev Bhardwaj	Judicial Member
17.	Justice Virendra Singh Gyansingh Bisht (R)	Judicial Member
18.	Mrs. Lakshmi Gurung	Judicial Member
19.	Ms. Reeta Kohli	Judicial Member
20.	Shri KR Saji Kumar	Judicial Member
21.	Shri Jyoti Kumar Tripathi	Judicial Member
22.	Shri Khetrabasi Biswal	Judicial Member

Technical Members of the National Company Law Tribunal (as on November 30, 2024)

Sl. No.	Name	Post
1.	Shri Balraj joshi	Technical Member
2.	Shri Subrata Kumar Dash	Technical Member
3.	Shri Avinash K. Srivastava	Technical Member
4.	Shri Sameer Kakar	Technical Member
5.	Shri Manoj Kumar Dubey	Technical Member
6.	Shri Kaushalendra Kumar Singh	Technical Member
7.	Smt. Anu Jagmohan Singh	Technical Member
8.	Shri Charan Singh	Technical Member
9.	Shri Atul Chaturvedi	Technical Member
10.	Shri Prabhat Kumar	Technical Member
11.	Shri Ashish Verma	Technical Member
12.	Smt. Madhu Sinha	Technical Member
13.	Dr. Velamur Govindan Venkata Chalapathy	Technical Member
14.	Shri Umesh Kumar Shukla	Technical Member
15.	Shri Venkataraman Subramaniam	Technical Member
16.	Shri Ravichandran Ramasamy	Technical Member
17.	Shri Sanjay Puri	Technical Member
18.	Shri Arvind Devanathan	Technical Member
19.	Shri Anil Raj Chellan	Technical Member
20.	Shri Charanjeet Singh Gulati	Technical Member
21.	Shri Sanjiv Dutt	Technical Member
22.	Dr. Sanjeev Ranjan	Technical Member

Annexure-V

List of the Benches of National Company Law Tribunal

Sl.iNo.	Title of Bench	Location	Jurisdiction of the Bench
(1)	(2)	(3)	(4)
1.	(a) NCLT, Principal Bench (b) NCLT,iNew Delhi Bench	Block 3, CGO Complex, Lodhi Road, New Delhi - 110003.	(1) Union Territory of Delhi
2.	NCLT Ahmedabad Bench	1st and 2nd floor, Corporate Bhavan, Beside Zydus Hospital, S G Highway, Thaltej, Ahmedabad -380059, (Gujarat)	(1) State of Gujarat (2) Union Territory of Dadra and Nagar Haveli (3) Union Territory of Daman and Diu
3.	NCLT Allahabad Bench	6/7 -B, Panna Lal Road, Prayagraj -211002	(1) State of Uttar Pradesh (2) State of Uttarakhand
4.	NCLT Amravati Bench	1ist Floor, APIIC Towers, IT Park, Mangalagiri, Guntur, Andhra Pradesh-522503	(1) State of Andhra Pradesh
5.	NCLT Bengaluru Bench	Corporate Bhawan, 12th Floor, Raheja Towers, M.G., Road, Benguluru-560001	(1) State of Karnataka
6.	NCLT Chandigarh Bench	Ground Floor, Corporate Bhawan, Sector-27 B, Madhya Marg, Chandigarh-160019	(1) State of Himachal Pradesh (2) Union Territory of Jammu and Kashmir (3) Union Territory of Ladakh (4) State of Punjab (5) Union Territory of Chandigarh (6) State of Haryana
7.	NCLT Chennai Bench	Corporate Bhawan (UTI Building), 3ird Floor, No. 29 Rajaji Salai, Chennai -600001	(1) State of Tamil Nadu (2) Union Territory of Puducherry
8.	NCLT Cuttack Bench	Corporate Bhawan, CDA, Sector -1, Cuttack -753014	(1) State of Chhattisgarh (2) State of Odisha.
9.	NCLT Guwahati Bench	1ist Flor BSNL Bhawan Building, Ananda Ram Baruah Rd, Pan Bazaar, Guwahati, Assam - 781001	(1) State of Arunachal Pradesh (2) State of Assam (3) State of Manipur (4) State of Mizoram (5) State of Meghalaya (6) State of Nagaland (7) State of Sikkim (8) State of Tripura
10.	NCLT Hyderabad Bench	Corporate Bhawan, Bandlaguda Tattiannaram Village, Hayatnagar Mandal, Rangared Hyderabad, Telangana -500068	(1) State of Telangana

Sl.iNo.	Title of Bench	Location	Jurisdiction of the Bench
(1)	(2)	(3)	(4)
11.	NCLT Indore Bench	Office No 1&7, RCM -11, Anandavan, Sch No 140, Indore - 452016, Madhya Pradesh	(1) State of Madhya Pradesh
12.	NCLT Jaipur Bench	G -6/7, Corporate Bhawan, Residency Area, Civil Lines, Jaipur -302001	(1) State of Rajasthan.
13.	NCLT Kochi Bench	Company Law Bhawan, BMC Road, Thrikkakara -(PO) Kakkanad, Kochi-682021(Kerala)	(1) State of Kerala (2) Union Territory of Lakshadweep
14.	NCLT Kolkata Bench	5, Esplanade Row (West), Town Hall Ground and 1st Floor Kolkata -700001	(1) State of Bihar (2) State of Jharkhand (3) State of West Bengal (4) Union Territory of Andaman and Nicobar Island
15.	NCLT Mumbai Bench	4th Floor, MTNL Exchange Building, GD Somani Marg, Cuffe parade Mumbai -400005	(1) State of Maharashtra (2) State of Goa

Annexure-VI

Citizens'/ Clients' Charter
Ministry of Corporate Affairs

Sl.iNo.	Services/ Transactions	Measurement criteria of performance in this area	Service Standard
(1)	(2)	(3)	(4)
1.	Availability of names for new Company	Maximum time to inform deficiencies in the application from the date of receipt of the application	1 working day
		Maximum time taken to communicate approval by the concerned ROC on receipt of the application	1 working day
2.	Incorporation of a Company	Maximum time to inform deficiencies in the application from the date of receipt of the application	1 working day
		Maximum time taken to communicate approval and issue of certificate of Incorporation by the concerned ROC on receipt of the application	1 working day
3.	Registration of unregistered Companies	Maximum time to inform deficiencies in the application from the date of receipt of the application	2 working days
		Maximum time taken to issue of certificate of Registration by the concerned ROC on receipt of approval	2 working days
4.	Registration of a place of Business in India by a company incorporated outside India	Maximum time to inform deficiencies in the application from the date of receipt of the application	2 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	1 working day
5.	Change of name of the Company	Maximum time to inform deficiencies in the application from the date of receipt of the application	3 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	3 working days
6.	Registration for change of Objects of the Company	Maximum time to inform deficiencies in the application from the date of receipt of the application	3 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	2 working days

Sl.eNo.	Services/ Transactions	Measurement criteria of performance in this area	Service Standard
(1)	(2)	(3)	(4)
7.	Conversion of Private Company to Public company	Maximum time to inform deficiencies in the application from the date of receipt of the application	3 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	3 working days
8.	Conversion of unlimited Company to limited Company	Maximum time to inform deficiencies in the application from the date of receipt of the application	3 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	3 working days
9.	Registration of a Prospectus before issue of IPO or FPO	Maximum time to inform deficiencies in the application from the date of receipt of the application	2 working days
		Maximum time taken to issue acknowledgement by the concerned ROC from the date of receipt of the application .	1 working days
10.	Registration of Charge creation/ modification/ satisfaction where approval/registration is required as per provisions of the Act	Maximum time to inform deficiencies in the application from the date of receipt of the application	3 working days
		Maximum time taken to issue of certificate by the concerned ROC on receipt of approval	2 working days
11.	Condonation of delay in filing of satisfaction of charge	Maximum time to inform deficiencies and take up queries and clarification on the application from the date of receipt of the application	20 working days
		Maximum time taken to issue of order granting condonation by the concerned Regional Director on receipt of approval	10 working days
12.	Application for extension of time to hold AGM	Maximum time to inform deficiencies in the application from the date of receipt of the application	5 working days
		Maximum time taken to communicate approval by the concerned ROC on receipt of approval	2 working days

Sl. No.	Services/ Transactions	Measurement criteria of performance in this area	Service Standard
(1)	(2)	(3)	(4)
13.	Registration of Court or NCLT or RD order	Maximum time to inform deficiencies in the application from the date of receipt of the application	2 working days
		Maximum time taken for granting of license to the applicant on receipt of duly completed application form with required documents	2 working days
14.	Issuance of certified copies of documents of a company	Maximum time to inform deficiencies in the application from the date of receipt of the application	4 working days
		Maximum time taken to issue certified copy of the document on receipt of duly completed application form with required documents	3 working days
15.	Issuance of Director Identification Number (DIN)	Maximum time to inform deficiencies in the application from the date of receipt of the application	1 working day
		Maximum time taken to issue approval letter granting DIN on receipt of duly completed application form with required documents	1 working day
16.	Change in DIN Particulars	Maximum time to inform deficiencies in the application from the date of receipt of the application	1 working day
		Maximum time taken to issue letter for changing DIN on receipt of duly completed application form with required documents	1 working day
17.	Conversion of company to LLP	Maximum time to inform deficiencies in the application from the date of receipt of the application	2 working days
		Maximum time taken to issue certificate of conversion on receipt of duly completed application form with required documents	3 working days
18.	Shifting of registered office of the company from one State to another	Maximum time to inform deficiencies and take up queries and clarification on the application from the date of receipt of the application	45 working days
		Maximum time taken to issue order confirming the change of Registered Office of a Company on receipt of duly completed application form with required documents	15 working days

No	Services/ Transactions	Measurement criteria of performance in this area	Service Standard
(1)	(2)	(3)	(4)
19.	Shifting of registered office of the company from one RoC to another RoC within the State	Maximum time to inform deficiencies in the application from the date of receipt of the application	45 working days
		Maximum time taken to issue order confirming the change of Registered Office of a Company on receipt of duly completed application form with required documents	15 working days
20.	Grant of license under Section 8 of the Companies Act, 2013	Maximum time to inform deficiencies in the application from the date of receipt of the application	5 working days
		Maximum time taken for granting of license to the applicant on receipt of duly completed application form with required documents	2 working days
21.	1. Appointment or Reappointment and payment of remuneration to or payment of increased remuneration to or waiver of recovery of excess remuneration paid to Managing Director/ Whole -Time Director/Manager/ Chief Executive Officer. 2. ‘Section 197 has been amended to Omit the requirement of the approval of the Central Government for payment of remuneration to the managerial personnel (in case of inadequacy of profits) w.e.f. 12.09.2018 vide Notification No. S.O. 48822 (E)’.	Maximum time to inform deficiencies in the application from the date of receipt of the application (after assignment of said Form to Dealing Hand)	30 working days
		Maximum time taken for communicating approval/rejection on receipt of application completed in all respects.(after the due procedure is followed)	30 working days

Sl. No.	Services/ Transactions	Measurement criteria of performance area	Service Standard
(1)	(2)	(3)	(4)
	3. Statutory applications filed by Nidhi Companies for declaration/ updation under Section 406 of Companies Act, 2013/Nidhi Rules, 2014 as amended.		
22.	Investor Grievance Redressal/ CPGRAMS	Maximum time taken to dispose of from the date of receipt of grievance	30 working days
23.	Other Grievances/ Complaints related to MCA - 21	Maximum time taken to dispose of from the date of receipt of grievance	15 working days
24.	Application for seeking status of Company as dormant under Section 455 of the Companies Act, 2013	Maximum time to inform deficiencies from date of receipt of the form	3 working days
		Maximum time to communicate approval or intimation about the form having been taken on record	2 working days
25.	Application for seeking status of Company as active under Section 455 of the Companies Act, 2013	Maximum time to inform deficiencies from date of receipt of the form	3 working days
		Maximum time to communicate approval or intimation about the form having been taken on record	2 working days
26.	Registration of intimation about appointment of Receiver/ Manager [Section 84(1)] of the Companies Act, 2013	Maximum time to inform deficiencies from date of receipt of the form	3 working days
		Maximum time to communicate approval or intimation about the form having been taken on record	2 working days
27.	Condonation of delay u/s 460 of the Companies Act, 2013	Maximum time to inform deficiencies in the application from the date of receipt of the application	15 working days
		Maximum time taken to issue of approval by CG	30 working days
28.	For change in Financial Year under Section 2(41) of the Act and Rule 40 of the Companies (Incorporation) rules, 2014	Maximum time to inform deficiencies and take up queries and clarifications on the application from the date of receipt of the application	30 working days
		Maximum time taken to issue order on receipt or resubmission of duly completed application form with required documents	30 working days
29.	Conversion from Public to private under Section 14(1) (2nd proviso) and Rule 41	Maximum time to inform deficiencies and take up queries and clarifications on the application from the date of receipt	45 working days

Sl. No.	Services/ Transactions	Measurement criteria of performance in this area	Service Standard
(1)	(2)	(3)	(4)
	of the Companies (Incorporation) rules, 2014	of the application	
		Maximum time taken to issue order on receipt or resubmission of duly completed application form with required documents or after holding hearing in the matter as the case may be.	30 working days
30.	Refund of claims (dividends and other amounts remaining unclaimed/ unpaid for a period of 7 years or more are transferred to Investor Education and Protection Fund Authority as per Sections 124/125 of Companies Act, 2013. Further, the refund of shares corresponding to the dividend	Maximum time for completing the processing of claim application from the date of receipt of application along with verification report and complete requisite documents	60 working days

Annexure- VII

Important dates pertaining to Insolvency and Bankruptcy Code, 2016

Sl. No.	Event	Date
1.	Submission of BLRC Report	November 4, 2015
2.	IBC passed by the Parliament	May 11, 2016
3.	Assented by the President	May 28, 2016
4.	Date of Notification of various provisions under the Act (has been done in stages)	
i.	Section 188 to 194 (Establishment and Incorporation of Board)	August 5, 2016
ii.	Establishment of IBBI	October 1, 2016
iii.	Provisions relating to power and functions of IBBI	November 1, 2016
iv.	Provisions relating to IPA and IP	November 15, 2016
v.	Provisions relating to CIRP	November 30, 2016
vi.	Provisions related to liquidation	December 9, 2016
vii.	Provisions of Voluntary liquidation, IU and Cross - Border Insolvency	March 30, 2017
viii.	Fast Track Corporate Insolvency Resolution Process	June 14, 2017
5.	IBC (Amendment) Ordinance, 2017	November 23, 2017
6.	IBC (Amendment) Act, 2018	January 18, 2018
7.	1st Report of ILC	March 26, 2018
8.	IBC (Amendment) Ordinance, 2018	June 6, 2018
9.	IBC (Second Amendment) Act, 2018	August 17, 2018
10.	2nd ILC Report on Cross Border Insolvency	October 16, 2018
11.	IBC (Amendment) Act, 2019	August 6, 2019
12.	Provisions relating to resolution of insolvency and bankruptcy of personal guarantors to corporate debtors	December 1, 2019
13.	IBC (Amendment) Ordinance, 2019	December 28, 2019
14.	IBC (Amendment) Act, 2020	March 13, 2020
15.	3rd Report of ILC	February 20, 2020
16.	IBC (Amendment) Ordinance, 2020	June 5, 2020

Sl. No.	Event	Date
17.	IBC (Second Amendment) Act, 2020	September 23, 2020
18.	The Insolvency and Bankruptcy Code (Amendment) Ordinance, 2021	April 4, 2021
19.	4th ILC Report (on Pre -packaged Insolvency Resolution Process)	July 16, 2021
20.	CBIRC Report on Cross Border Rules and Regulations	June 15, 2021
21.	The Insolvency and Bankruptcy Code (Amendment) Act, 2021	August 12, 2021
22.	CBIRC Report on Group Insolvency	December 10, 2021
23.	5th Report of ILC	May 20, 2022

Rules made under the IBC, 2016

Sl. No.	Event	Relevant Provision of the Code	Date of Issue	Updated on
1.	Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016	Clauses (c), (d), (e) and (f) of sub - section (1) of Section 239 read with Sections 7, 8, 9 and 10 of the Insolvency and Bankruptcy Code, 2016.	November 30, 2016	September 24, 2020
2.	IBBI (Form of Annual Statement of Accounts) Rules, 2018	Clause (zh) of sub-section (2) of Section 239 read with sub- section (1) of Section 223 of the Insolvency and Bankruptcy Code, 2016.	May 1, 2018	N.A.
3.	IBBI (Annual Report) Rules, 2018	Clause (zm) of sub - section (2) of Section 239 read with sub- section (1) of Section 229 of the Insolvency and Bankruptcy Code, 2016	May 1, 2018	September 16, 2020
4.	IBBI (Medical Facility to Chairperson and Whole Time Members) Scheme Rules, 2019	Clause (zd) of sub- section (2) of Section 239 read with sub- section (5) of Section 189 of the Insolvency and Bankruptcy Code, 2016	August 5, 2019	N.A.
5.	IBBI (Salary, allowances and other terms and conditions of service of Chairperson and Members) Rules, 2016	Clause (zd) of subi-section (2) of Section 239, read with sub- section (5) of Section 189 of the Insolvency and Bankruptcy Code, 2016.	August 29, 2016	January 9, 2020
6.	Insolvency and Bankruptcy (Insolvency and Liquidation proceedings of Financial Service Providers and Application to Adjudicating Authority) Rules, 2019	Section 227 read with clause (zk) of subi-section (2) of Section 239 of the Insolvency and Bankruptcy Code, 2016.	November 15, 2019	N.A.

Sl. No.	Event	Relevant Provision of the Code	Date of Issue	Updated on
7.	Insolvency and Bankruptcy (Application to adjudicating authority for insolvency resolution process for personal Guarantors to Corporate Debtors) Rules, 2019	Sub-section (1), clauses (g), (h), (i), (m), (n) and (o) of sub-section (2) of Section 239 read with clause (e) of Section 2 and sub-section (2), clauses (c) and (e) of sub-section (14) and clause (e) of sub-section (15) of Section 79 of the Insolvency and Bankruptcy Code, 2016.	November 15, 2019	N.A.
8.	Insolvency and Bankruptcy (Application to adjudicating authority for Bankruptcy process for personal Guarantor to Corporate Debtor) Rules, 2019	Sub-section (1) and clauses (p), (q), (r), (s), (t), (u), (v), (w), (x), (y), (z), (za), (zb) and (zc) of sub-section (2) of Section 239 read with clause (e) of Section 2 and sub-section (2), clauses (c) and (e) of sub-section (14) and clause (e) of sub-section (15) of Section 79 of the Insolvency and Bankruptcy Code, 2016.	November 15, 2019	N.A.
9.	The Insolvency and Bankruptcy (pre-packaged insolvency resolution process) Rules, 2021	Sub-section (1) and clause (fd) of sub-section (2) of Section 239 read with sub-section (2) of Section 54C of the Insolvency and Bankruptcy Code, 2016.	April 9, 2021	N.A.

Regulations made under the IBC, 2016

Sl. No.	Name of Regulation	Relevant Provisions of the Code	Date of Notification	Date of last update
1.	IBBI (Insolvency Professional Agencies) Regulations 2016	Sections 196, 201, 202, 219, and 220 read with Section 240.	November 21, 2016	July 4, 2022
2.	IBBI (Model Byelaws and Governing Board of IPAs) Regulations, 2016	Sections 196, 203 and 205 read with Section 240	November 21, 2016	January 31, 2024
3.	IBBI (Insolvency Professionals) Regulations, 2016	Sections 196, 207 and 208 read with Section 240	November 23, 2016	January 31, 2024
4.	IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016	Sections 5, 7, 9, 14, 15, 17, 18, 21, 24, 25, 29, 30, 196 and 208 read with Section 240	November 30, 2016	September 24 2024
5.	IBBI (Liquidation Process) Regulations, 2016	Sections 5, 33, 34, 35, 37, 38, 39, 40, 41, 43, 45, 49, 50, 51, 52, 54, 196 and 208 read with section 240	December 15, 2016	February 12, 2024
6.	IBBI (Voluntary Liquidation Process) Regulations, 2017	Sections 59, 196 and 208 read with Section 240	March 31, 2017	January 31, 2024
7.	IBBI (Inspection and Investigation) Regulations, 2017	Sections 196, 217, 218, 219,e220 read with Section 240	June 12 , 2017	August 13, 2024
8.	IBBI (Information Utilities) Regulations, 2017	Sections 196,e209, 210, 211,e212,e213,e214, 215 , 216 read with Section 240	March 31, 2017	August 13, 2024
9.	IBBI (Fast Track Insolvency Resolution Process for Corporate Persons) Regulations, 2017	Sections 58, 196 and 208 read with Section 240	June 14, 2017	February 7, 2018

Sl. No.	Name of Regulation	Relevant Provisions of the Code	Date of Notification	Date of last update
1 0.	IBBI (Grievance and Complaint Handling Procedure) Regulations, 2017	Sections 196,e217, read with Section 240	December 6, 2017	June 14, 2022
11.	IBBI (Bankruptcy Process for Personal Guarantors to Corporate Debtors) Regulations, 2019	Clause (t) of sub section (1) of Section 196, and clauses (zr) and (zs) of sub -section (1) of Section 240 read with clause (e) of Section 2 and Section 60	November 20, 2019	January 31, 2024
12.	IBBI (Insolvency Resolution Process for Personal Guarantors to Corporate Debtors) Regulations, 2019	Clause (t) of sub - section (1) of Section 196, sub - section (1) and clauses (zn), (zo), (zp) and (zq) of sub -section (2) of Section 240 read with clause (e) of Section 2 and Section 60	November 20,e2019	January 31, 2024
13.	IBBI (Pre - packaged Insolvency Resolution Process) Regulations, 2021	Sections 196, 208 and 240 read with provisions of Chapter III - A of Part II of the IBC, 2016	April 9, 2021	N.A.
Regulations made for internal functioning of the Board				
14.	IBBI (Engagement of Research Associates and Consultants) Regulations, 2017	Section 240	January 30, 2017	June 1, 2022
15.	IBBI (Advisory Committee) Regulations, 2017	Section 197 read with Section 240	January 30, 2017	N.A.
16.	IBBI (Procedure for Governing Boards Meetings) Regulations, 2017	Section 192(1) read with Section 240	January 30, 2017	July 23, 2019
17.	IBBI (Employees' Service) Regulations, 2017	Sub -sections (2) and (3) of Section 194 read with Section 240	August 24, 2017	July 6, 2022
18.	IBBI (Mechanism for Issuing Regulations) Regulations, 2018	Section 196(1)(s) r/w Section 240	October 22, 2018	N.A.

Annexure -X

Composition of the Competition Commission of India (CCI)

Sl. No.	Name	Post (Present)
1.	Smt. Ravneet Kaur	Chairperson
2.	Shri Anil Agrawal	Member
3.	Ms. Sweta Kakkad	Member
4.	Shri Deepak Anurag	Member

Composition of the Insolvency and Bankruptcy Board of India (IBBI)

Sl. No.	Name	Post
1.	Shri Ravi Mital	Chairperson
2.	Shri Jayanti Prasad	Whole - time Member
3.	Shri Sandip Garg	Whole - time Member
4.	Dr. Rajiv Mani	Ex - officio Member
5.	Shri Unnikrishnan A.	Ex - officio Member
6.	Smt. Anita Shah Akella	Ex - officio Member
7.	Smt. Reetu Jain	Ex - officio Member

Composition of National Financial Reporting Authority (NFRA)

Sl. No.	Name	Post
1.	Dr. Ajay Bhushan Prasad Pandey	Chairperson
2.	Dr. Praveen Kumar Tiwari	Full -time Member
3.	Ms. Smita Jhingran	Full -time Member
4.	Shri Inder Deep Singh Dhariwal, Joint Secretary – Ministry of Corporate Affairs (MCA)	Part -time Member
5.	Dr. Kavita Prasad, Director General (Commercial - I), Comptroller & Auditor General (CAG)	Part -time Member
6.	Ms. Sudha Balakrishnan, Chief Financial Officer - Reserve Bank of India (RBI)	Part -time Member
7.	Shri S V Murali Dhar Rao, Executive Director – Securities & Exchange Board of India (SEBI)	Part -time Member
8.	Professor R. Narayanaswamy	Part -time Member
9.	Shri Sanjay Kallapur, Professor, ISB Hyderabad	Part -time Member
10.	President, ICAI	Part -time Member
11.	Chairperson, Accounting Standards Board -ICAI	Part -time Member
12.	Chairperson, Auditing and Assurance Standards Board -ICAI	Part -time Member

Annexure -XIII

List of notified designated Special Court for various States/UTs

Sl. No.	Court	Jurisdiction	State
(1)	(2)	(3)	(4)
1.	2ind Special Court, Calcutta	West Bengal	West Bengal
2.	Principal District Judge cum Special Judge (Companies Act) Ahmedabad	Gujarat	Gujarat
3.	ASJ -03 cum Special Judge (Companies Act) Dwarka	NCTiof Delhi	NCTiof Delhi
4.	Court of 58th Additional Sessions Judge, Greater Mumbai	Maharashtra	Maharashtra
5.	Additional Sessions Judge Pune	Maharashtra	Maharashtra
6.	Additional Districts and Sessions Judge No.1, Kamrup (M), Guwahati	Assam	Assam
7.	LIX Additional City Civil and Sessions Judge, Bengaluru City	Karnataka	Karnataka
8.	Special Judge (Sati Niwaran), Jaipur	Rajasthan	Rajasthan
9.	Additional District and Sessions Judge Kanpur Nagar	Uttar Pradesh	Uttar Pradesh
10.	Special Court (Companies Act), At Gurugram	Haryana	Haryana
11.	District and Sessions Judge cum Special Court, Cuttack	Odisha	Odisha
12.	ASJ -Anti Corruption Jammu & Kashmir	Union Territory of Jammu & Kashmir	Union Territory of Jammu & Kashmir
13.	District and Sessions Judge Kohima	Nagaland	Nagaland
14.	District and Sessions Judge Aizwal	Mizoram	Mizoram
15.	West Sessions Division Yupia	Arunachal Pradesh	ArunachaliPradesh
16.	District and Sessions Judge Shillong	Meghalaya	Meghalaya
17.	Sub -Divisional Judicial Magistrate Ranchi	Jharkhand	Jharkhand
18.	Sessions Judge Bilaspur	Chhattisgarh	Chhattisgarh
19.	Session Judge and 2nd Additional Sessions Judge S.A.S Nagar	Punjab	Punjab
20.	Session Judge and 2ind Additional Sessions Judge Chandigarh	Chandigarh	Chandigarh

Sl. No.	Court	Jurisdiction	State
(1)	(2)	(3)	(4)
21.	Additional District & Sessions Court, Coimbatore	District of Coimbatore, Dharmapuri, Dindigul, Erode, Krishnagiri, Namakkal, Nilgiris, Salem and Tiruppur	TamiliNadu
22.	II Additional District & Sessions Court, Puducherry	Puducherry	Puducherry
23.	Session Judge, Imphal East	Manipur	Manipur
24.	XV Additional Court, XVI Additional Court of City Civil Court, Chennai	State of Tamil Nadu except Districts of Coimbatore, Dharmapuri, Dindigul, Erode, Krishnagiri, Namakkal, Nilgiris, salem and Tiruppur	Tamil Nadu
25.	Additional District & Sessions Judge Patna	Bihar	Bihar
26.	Special Court for Trial of Economic Offences -cu m -VIII Additional Metropolitan Sessions Judge Court -Cum -XXII Additional Chief Judge, City Civil Court, Hyderabad	Telangana	Telangana
27.	Court of IV Additional District Judge -Cum -II Additional Metropolitan Sessions Judge, Visakhapatnam	Andhra Pradesh	Andhra Pradesh
28.	Principal Judge City Civil Court Chennai	TamiliNadu	TamiliNadu
29.	Additional District & Sessions Court -VII, Ernakulam	Kerala	Kerala
30.	District & Sessions Court, Kavaratti	Union Territory of Lakshadweep	Union Territory of Lakshadweep
31.	IV Additional District & Sessions Judge Dehradun	Uttarakhand	Uttarakhand

Sl. No.	**Court**	**Jurisdiction**	**State**
(1)	**(2)**	**(3)**	**(4)**
32.	Principal Sessions Judge Leh	Union Territory of Ladakh	Union Territory of Ladakh
33.	II ACJM Dehradun	Uttarakhand (for offences punishable upto 2 years)	Uttarakhand
34.	Sub - Judge Jammu & Srinagar	Union Territory of Jammu & Kashmir (for offences punishable upto 2 years)	Union Territory of Jammu &Kashmir
35.	CJM Leh	Union Territory (for offences punishable upto 2 years)	Union Territory of Ladakh

MINISTRY OF CORPORATE AFFAIRS
GOVERNMENT OF INDIA

9/3/2024-R&A (266872)
Government of India
Ministry of Corporate Affairs
R&A Division

8th Floor, Lok Nayak Bhawan,
Khan Market, New Delhi -03
Date: 10.02.2025

CORRIGENDUM

Sub: MCA Annual Report for the year 2024-25 -reg.

In partial modification of the Annual Report of the Ministry of Corporate Affairs (MCA) for the year 2024-25, the **Table 7.9:** Representation of SCs, STs and OBCs in the Headquarter and Field Offices, is to be read as under:

For:

Group	Sectioned Strength	In position						
		Total	SC	ST	OBC	EWS	PH	Other (UR)
A	293	248	34	23	55	06	02*	130
B	393	311	57	36	61	08	08*	149
C	687	157	32	20	34	01	02	68
Total	**1,373**	**716**	**123**	**79**	**150**	**15**	**2**	**347**

Read:

Group	Sectioned Strength	In position						
		Total	SC	ST	OBC	EWS	PH	Other (UR)
A	293	248	34	23	55	06	02*	130
B	410	322	60	36	62	08	08*	156
C	689	157	32	19	35	01	02	68
Total	**1,392**	**727**	**126**	**78**	**152**	**15**	**2**	**354**

*(*The PH category officials with * after their numbers belong to various categories such as SC, ST, OBC, EWS and UR. Hence, they are not included in the Total of Rows and Columns in order to avoid double counting)*

(Deepak Kumar)
Director

To

MCA Website, to be placed along with the soft copy of the Annual Report for the year 2024-25